

OFFICE LEASE AGREEMENT

BETWEEN

PARK LANE 8070 LLC,
a Texas limited liability company
(“LANDLORD”)

AND

TD INDUSTRIES, INC.,
a Texas corporation
(“TENANT”)

8070 PARK LANE
DALLAS, TEXAS

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OFFICE LEASE AGREEMENT

This Office Lease Agreement (the "**Lease**") is made and entered into as of March 26, 2026, between Park Lane 8070 LLC, a Texas limited liability company ("**Landlord**"), and TD INDUSTRIES, INC., a Texas corporation ("**Tenant**").

W I T N E S S E T H:

1. **Definitions.** The following are definitions of some of the defined terms used in this Lease. The definition of other defined terms are found throughout this Lease.

A. "**Building**" shall mean the office building located at 8070 Park Lane, Dallas, Texas 75231, currently known as 8070 Park Lane.

B. "**Base Rent**": Base Rent shall be paid according to the following schedule, subject to the provisions of Section 4 hereof. As used herein, "**Lease Month**" shall mean a period of time commencing on the same numeric day as the Commencement Date and ending on (but not including) the day in the next calendar month that is the same numeric date as the Commencement Date; provided, however, that if the Commencement Date does not occur on the first day of a calendar month, the period from the Commencement Date to the first (1st) day of the next calendar month shall be included in the first (1st) Lease Month for purposes of determining the duration of the Term and the monthly Base Rent rate applicable for such partial month).

PERIOD	ANNUAL BASE RENT	MONTHLY INSTALLMENTS OF BASE RENT	ANNUAL RATE PER SQ. FT.
Lease Months 1 – 34	\$24,000.00	\$2,000.00	n/a

C. "**Additional Rent**" shall mean Tenant's Pro Rata Share of Basic Costs (hereinafter defined), Tenant's Pro Rata Share of Taxes (hereinafter defined), Tenant's Pro Rata Share of Electrical Costs (hereinafter defined) and any other sums (exclusive of Base Rent) that are required to be paid to Landlord by Tenant hereunder, which sums are deemed to be Additional Rent under this Lease.

D. "**Basic Costs**" is defined in Exhibit C attached hereto.

E. "**Taxes**" is defined in Exhibit C attached hereto.

F. "**Security Deposit**" shall mean the sum of \$2,000.00. The Security Deposit shall be paid by Tenant to Landlord contemporaneously with Tenant's execution hereof.

G. "**Lease Term**" shall mean a period of twenty four (24) Lease Months commencing on the earlier to occur of (a) two business days after the date of this Lease Date

(the "**Target Commencement Date**") and (b) the date on which Tenant occupies any portion of the Premises in the condition required hereby (the earlier to occur of such dates being defined as the "**Commencement Date**"). "**Expiration Date**" shall mean the last day of the Lease Term. Notwithstanding the foregoing, if the Expiration Date, as determined herein, does not occur on the last day of a calendar month, the Lease Term shall be extended by the number of days necessary to cause the Expiration Date to occur on the last day of the last calendar month of the Lease Term. Landlord represents and warrants to Tenant that on the Commencement Date the Premises will be (i) delivered to free of all tenancies, and occupants, and (ii) all mechanical electrical, plumbing, HVAC systems, heating, sewer, sprinkler and other life safety equipment and systems forming a part of the Building will be in AS-IS, WHERE-IS, WITH ALL FAULTS condition. Upon the determination of the actual Commencement Date and the actual Expiration Date, Landlord and Tenant shall each execute and deliver a Commencement Letter in the form of **Exhibit F** attached hereto (the "**Commencement Letter**") setting forth the Commencement Date and the Expiration Date.

H. "**Premises**" shall mean the office space known in Suite 285 the Building and outlined on **Exhibit A** to this Lease. The Premises is on floor two of the Building.

I. "**Rentable Area in the Premises**" shall mean approximately 500 square feet.

J. "**Rentable Area in the Building**" shall mean 68,878 square feet.

K. "**Tenant's Pro Rata Share**" shall initially mean: n/a

L. "**Permitted Use**" shall mean general office for the development, construction, sale and lease of residential properties including that certain planning for a project located at approximately 8010 Park Lane, Dallas, Texas 75231.

M. "**Holiday**" shall mean New Year's Day, Memorial Day, Independence Day, Labor Day, Thanksgiving Day, Christmas Day, and any other nationally or regionally recognized holiday; provided that in the event any of the foregoing occur on a Saturday or a Sunday, then the term Holiday shall include any weekday that is the weekday commonly recognized by businesses to close for such Holiday.

N. "**Guarantor(s)**" shall mean any party that agrees in writing to guarantee Tenant's obligations under the Lease. As of the date of this Lease, there are no Guarantor(s).

O. "**Broker**" shall mean, collectively, CBRE, Inc., representing Landlord. There is no broker representing Tenant.

P. "**Business Day(s)**" shall mean Mondays through Fridays exclusive of Holidays.

Q. "**Common Areas**" shall mean those areas located within the Building or on the Property designated by Landlord, from time to time, for the common use or benefit of tenants generally and/or the public.

R. **"Default Rate"** shall mean the lower of (i) eighteen percent (18%) per annum, or (ii) the highest rate of interest from time-to-time permitted under applicable federal and state law.

S. **"Normal Business Hours"** for the Building shall mean 5:00 a.m. to 7:00 p.m. Mondays through Fridays, and 7:00 a.m. to 6:00 p.m. on Saturdays and Sundays, exclusive of Holidays.

T. **"Property"** shall mean the Building and the parcel(s) of land on which it is located, which land is described in **Exhibit A-1** attached hereto, other improvements located on such land, adjacent parcels of land that Landlord operates jointly with the Building, and other buildings and improvements located on such adjacent parcels of land.

U. **"Notice Addresses"** shall mean the following addresses for Tenant and Landlord, respectively:

Tenant:

TD INDUSTRIES, INC.
13850 Diplomat Drive
Dallas, TX 75234
Attention: Thomas Nolan
Email: Thomas.Nolan@tdindustries.com

Landlord:

Park Lane 8070 LLC
9111 Cypress Waters Blvd.
Dallas, TX 75019
Attention: Brian Rosen and Vijay Borra
Telephone: (214) 365-0222
Email: brian@dfwland.com and vijay@dfwland.com

With copies to:

Northwood Retail LLC
8080 Park Lane, Suite 600
Dallas, Texas 75231
Attention: Ward Kampf
Telephone: (469) 828-3303
Email: wkampf@northwoodretail.com

Northwood Retail LLC
1819 Wazee Street
Denver, Colorado 80202
Attention: Jeff Nemec

Telephone: (303) 293-7183
Email: JNemec@northwoodretail.com

Payments of Rent only shall be made payable to the order of:
Park Lane 8070 LLC

by ACH to the following account:

Bank Name: Chickasaw Community Bank
Bank Address: 7500 W Memorial Rd
Oklahoma City, OK 73142
ABA Number: 103012966
Beneficiary Name: Park Lane 8070 LLC
Account Number: 10019461

or such other name and address as Landlord shall, from time to time, designate.

2. **Lease Grant/Possession.** Subject to and upon the terms herein set forth, Landlord leases to Tenant and Tenant leases from Landlord the Premises on an "**AS-IS, WHERE-IS, WITH ALL FAULTS**" basis (except as otherwise expressly set forth herein), together with the right, in common with others, to use the Common Areas. **EXCEPT AS EXPRESSLY SET FORTH HEREIN, NO REPRESENTATIONS OR WARRANTIES, EXPRESS OR IMPLIED, ARE MADE REGARDING THE CONDITION OR SUITABILITY OF THE PREMISES ON THE COMMENCEMENT DATE AND TENANT HAS NOT RELIED ON ANY SUCH REPRESENTATIONS OR WARRANTIES. FURTHER, TO THE EXTENT PERMITTED BY LAW, TENANT WAIVES ANY IMPLIED WARRANTY OF SUITABILITY, HABITABILITY, MERCHANTABILITY OR FITNESS FOR ANY PARTICULAR PURPOSE OF THE PREMISES OR OTHER IMPLIED WARRANTIES THAT LANDLORD WILL MAINTAIN OR REPAIR THE PREMISES OR ITS APPURTENANCES EXCEPT AS MAY BE CLEARLY AND EXPRESSLY PROVIDED IN THIS LEASE.**

B. Notwithstanding anything to the contrary contained in this Lease, if Landlord is unable to tender possession of any portion of the Premises on the date possession is to be delivered due to the holding over of another party, (i) this Lease shall not be void or voidable or otherwise affected, (ii) Tenant shall have no claim for damages against Landlord, and (iii) Tenant shall accept possession of the Premises when Landlord tenders possession thereof to Tenant. Landlord shall use reasonable efforts to regain possession of the Premises in order to deliver the same to Tenant. If the Commencement Date as set forth in Section 1G is a specified date, the Commencement Date shall be postponed until the date Landlord delivers possession of the Premises to Tenant, the Expiration Date shall correspondingly be postponed on a per diem basis, and, upon the determination of the actual Commencement Date and the actual Expiration Date, Landlord and Tenant shall each execute and deliver a Commencement Letter.

C. If Tenant, with Landlord's prior written approval, takes possession of the Premises prior to the Commencement Date for the sole purpose of performing any improvements therein or installing furniture, equipment or other personal property of Tenant, such possession shall be subject to all of the terms and conditions of the Lease, and Tenant shall be required to pay Rent with respect to the period of time prior to the Commencement Date during which Tenant performs such work. Tenant shall also be liable for the cost of any services (e.g., electricity, HVAC, freight elevators) that are provided to Tenant during the period of Tenant's possession prior to the Commencement Date. Nothing herein shall be construed as granting Tenant the right to take possession of the Premises prior to the Commencement Date, whether for construction, fixturing or any other purpose, without the prior written consent of Landlord.

3. **Use.** A. The Premises shall be used for the Permitted Use and for no other purpose. Tenant agrees not to use or permit the use of the Premises for any purpose which is illegal or dangerous, which creates a nuisance or which would increase the cost of insurance coverage with respect to the Building. Tenant will conduct its business and control its agents, servants, employees, customers, licensees, and invitees in such a manner as not to cause a materially adverse interference with or materially disturb other tenants' business operations or Landlord in the management of the Property. The population density within the Premises as a whole shall at no time exceed one person for each seventy five (75) rentable square feet in the Premises. Tenant will maintain the Premises in a clean and healthful condition, and comply with all laws, ordinances, orders, rules and regulations of any governmental entity with reference to the use, condition, configuration or occupancy of the Premises; provided that Tenant is solely responsible for compliance with the Americans with Disabilities Act of 1990, as amended, with its associated regulations ("**ADA**") in connection with Alterations made or caused to be made by Tenant, and Tenant's use and improvements to the Premises. Tenant shall not, and shall not allow its employees, agents, contractors or invitees, to bring into the Building or the Premises any dangerous or Hazardous Materials (defined below) except for customary office and cleaning supplies, provided Tenant uses, stores and disposes of the same in compliance with all applicable law. Tenant, at its expense, will comply with the rules and regulations of the Building attached hereto as **Exhibit B** and such other reasonable rules and regulations adopted and altered by Landlord from time-to-time that do not increase materially Tenant's monetary obligations to Landlord under this Lease or materially limit Tenant's rights in this Lease, and will cause all of its agents, employees, invitees, and visitors to do so. All such changes to rules and regulations shall be sent by Landlord to Tenant in writing. In the event of a conflict between the rules and regulations and the terms of this Lease, the terms of this Lease shall control.

B. Tenant represents, warrants, covenants and agrees that, except as otherwise provided herein, Tenant and its employees, agents, contractors and/or invitees (i) will not (a) use, introduce or maintain any hazardous or toxic chemical, material, substance or waste (collectively, "**Hazardous Materials**") in, on, under or about any portion of the Premises or the Building or (b) conduct any activity or activities in or on the Premises or the Building involving, directly or indirectly, the use, generation, treatment, storage, disposal or release of any Hazardous Materials and (ii) shall not be, nor permit the Premises to be, in violation of any applicable local, state or federal environmental laws, statutes or ordinances (or the rules and regulations promulgated thereunder) ("**Environmental Laws**"); provided that

Tenant may use customary office and cleaning supplies so long as the same are used, stored and disposed of in compliance with, and in quantities not reportable under, all applicable Environmental Laws and Tenant will have no liability for an unrelated party's actions or omissions that fail to comply with Environmental Laws. Tenant indemnifies Landlord and its lenders, contractors, representatives, and agents (collectively, "**Landlord Parties**") and shall hold them harmless from and against any and all loss, cost, damage, liability and expense arising in connection with any breach by Tenant of any of the representations, warranties, covenants, and agreements set forth herein. The provisions of this paragraph shall survive the expiration or earlier termination of the Lease.

C. Tenant agrees and acknowledges that Tenant's use of the Premises and the Property is subject to the terms and provisions of that certain Declaration of Covenants, Conditions and Restrictions, recorded as Document Number 200600288292 in the Official Records of Dallas County, Texas, and that certain Declaration of Covenants, Conditions and Restrictions With Respect to Residential Development for Park Lane, recorded as Document Number 200600288297, and re-recorded as Document No. 200600305919 in the Official Records of Dallas County, Texas (collectively, and as the same may be further amended from time to time, the "**Project Covenants**"). Tenant also agrees and acknowledges that the Property was developed with a condominium ownership structure (the "**Condominium**"), consisting of multiple units within the Condominium (each such unit, a "**Master Unit**"), and that the Condominium is governed by a condominium declaration recorded as Document Number 200600288294 in the Official Records of Dallas County, Texas, as amended by that certain amendment recorded as Document Number 20080118220 in the Official Records of Dallas County, Texas, and as further amended and restated by that certain amendment and restatement recorded as Document Number 201200305721 in the Official Records of Dallas County, Texas; and subsequently amended and restated by that certain Fourth Amended and Restated Master Declaration for Park Lane, a Condominium recorded as Document Number 202500244841 in the Official Records of Dallas County, Texas (collectively, and as the same may be further amended from time to time, the "**Master Condominium Declaration**"). Tenant acknowledges that Tenant has reviewed and approved a copy of the Project Covenants and the Master Condominium Declaration prior to the execution of this Lease. The Master Unit of which the Premises are a part is hereinafter referred to as "**Tenant's Master Unit**". Tenant acknowledges that the Master Condominium Declaration provides for the establishment of a condominium association (the "**Master Condominium Association**") with authority to manage, repair, maintain and operate the Property for the collective benefit of the owners and occupants of the Property, and establishes (i) access rights and easements affecting portions of the Property, (ii) signage and architectural controls, (iii) methods for allocating the costs of repairing, maintaining and operating the common elements of the Property, and (iv) enforcement mechanisms and lien rights of a condominium association. This Lease shall at all times be subject and subordinate to the Project Covenants and the Master Condominium Declaration, as amended from time to time, and Tenant agrees, upon written request therefor from Landlord, to evidence such subordination in a recordable document as may be reasonably acceptable to Landlord, Tenant and the Master Condominium Association. The Master Condominium Declaration, as amended from time to time, may be referred to in this Lease as the "**Condominium Declaration**", the Master Condominium

Association may be referred to as the "**Condominium Association**", and the Tenant's Master Unit may be referred to as the "**Condominium Unit**".

Further, Tenant acknowledges that Tenant's Master Unit may also be governed by additional condominium ownership structures (each a "**Unit Condominium**") consisting of multiple units within the Master Unit (each a "**Sub-Unit**") and that the Premises may be a part of one or more Sub-Units (such Sub-Unit of which Tenant's Premises is a part is hereinafter referred to collectively as "**Tenant's Sub-Unit**"). Finally, Tenant acknowledges that such Unit Condominium may be governed by other condominium declarations (each a "**Unit Condominium Declaration**"). Tenant also acknowledges that any Unit Condominium Declaration will provide for the establishment of a condominium association (the "Unit Condominium Association") with authority to manage, repair, maintain and operate the Sub-Units which are a part thereof for the collective benefit of the owners and occupants of such Sub-Units, and will establish (i) access rights and easements affecting portions of the Sub-Units, (ii) signage and architectural controls, (iii) methods for allocating the costs of repairing, maintaining and operating the common elements within the Sub-Units, and (iv) enforcement mechanisms and lien rights of a Condominium Association. This Lease shall at all times also be subject and subordinate to the Unit Condominium Declaration, as amended from time to time, and Tenant agrees, upon written request therefor from Landlord, to evidence such subordination of the Lease in a recordable document as may be reasonably acceptable to Landlord, Tenant and any such Unit Condominium Association. In the event that Tenant's Master Unit is governed by a Unit Condominium consisting of Sub-Units with the Tenant's Master Unit, then all references in this Lease to the "**Condominium Declaration**" shall not only refer to the Master Condominium Declaration but also to any Unit Condominium Declaration, as amended from time to time, as applicable; all references to the "**Condominium Association**" shall not only refer to the Master Condominium Association but also to any Unit Condominium Association, as applicable; and all references to the "**Condominium Unit**" shall not only refer to Tenant's Master Unit but also to Tenant's Sub-Unit, as applicable.

Any action or payment that this Lease requires Landlord to take or make for the Premises may, at Landlord's option, be taken or made by the Condominium Association; and Landlord shall have no liability for any obligations of or any rights exercised on behalf of the Condominium Association except to use commercially reasonable efforts to enforce all obligations of the Condominium Association set forth in the Condominium Declaration to the extent reasonably required for Tenant's exercise of its rights under this Lease and its use of and access to the Premises, including all obligations that Landlord is required to perform pursuant to this Lease but prohibited from performing due to the Condominium Declaration.

4. **Rent.** Tenant covenants to pay to Landlord during the Lease Term, without any setoff or deduction, the full amount of all Base Rent and Additional Rent due hereunder and the full amount of all such other sums of money as shall become due under this Lease, all of which hereinafter may be collectively called "**Rent**." In addition, Tenant shall pay, as Additional Rent, all sales and use taxes or other similar taxes, if any, levied or imposed by any city, state, county or other governmental body having authority, such payments to be in addition to all other payments required to be paid to

Landlord by Tenant under this Lease. Such payments shall be paid concurrently with the payments of the Rent on which the tax is based. Base Rent and Additional Rent for each calendar year or portion thereof during the Lease Term, shall be due and payable in advance in monthly installments on the first day of each calendar month during the Lease Term, without demand. If the Lease Term commences on a day other than the first day of a month or terminates on a day other than the last day of a month, then the installments of Base Rent and Additional Rent for such month or months shall be prorated, based on the number of days in such month. All amounts received by Landlord from Tenant hereunder shall be applied first to the earliest accrued and unpaid Rent then outstanding. Tenant's covenant to pay Rent shall be independent of every other covenant set forth in this Lease.

B. To the extent allowed by law, all installments of Rent not paid when due shall bear interest at the Default Rate from the date due until paid, provided, Tenant shall be entitled to a grace period of three (3) days after notice from Landlord with respect to the first late payment in any calendar year (with no notice being required thereafter). In addition, if Tenant fails to pay any installment of Base Rent and Additional Rent or any other item of Rent when due and payable hereunder, a "**Late Charge**" equal to five percent (5%) of such unpaid amount will be due and payable immediately by Tenant to Landlord, provided, Tenant shall be entitled to a grace period of three (3) days after notice from Landlord with respect to the first late payment in any calendar year.

C. The Basic Costs and Taxes payable hereunder shall be adjusted from time-to-time in accordance with the provisions of **Exhibit C** attached hereto.

5. **Security Deposit.** The Security Deposit shall be held by Landlord without liability for interest and as security for the performance by Tenant of Tenant's covenants and obligations under this Lease, it being expressly understood that the Security Deposit shall not be considered an advance payment of Rent or a measure of Tenant's liability for damages in case of default by Tenant. Landlord shall not be required to keep the Security Deposit separate from its other accounts, shall have no fiduciary responsibilities or trust obligations whatsoever with regard to the Security Deposit. Landlord may, from time-to-time, without prejudice to any other remedy and without waiving such default, use the Security Deposit to the extent necessary to cure or attempt to cure, in whole or in part, any default of Tenant hereunder. Following any such application of the Security Deposit, Tenant shall pay to Landlord within fifteen (15) days after demand the amount so applied in order to restore the Security Deposit to its original amount. If Tenant is not in default at the termination of this Lease, the balance of the Security Deposit remaining after any such application shall be returned by Landlord to Tenant within thirty (30) days thereafter. If Landlord transfers its interest in the Premises during the term of this Lease, Landlord shall assign the Security Deposit to the transferee and thereafter shall have no further liability for the return of such Security Deposit. **Services to be Furnished by Landlord.** Landlord shall furnish the following services: (i) heating and air conditioning during Normal Business Hours to provide a temperature condition required, in Landlord's reasonable judgment, for comfortable occupancy of the Premises under normal business operations; (ii) water at those points of supply provided for general use of tenants in the Building, and, subject to Landlord's approval, water at Tenant's expense for any private restrooms and office kitchen requested by Tenant; (iii) janitorial service in the Premises and Common Areas five (5) days a week

(excluding Holidays); (iv) electricity, at Tenant's cost, to the Premises for general office use, in accordance with and subject to the terms and conditions of Section 10 of this Lease; and (v) passenger elevator service, 24 hours a day, 7 days a week provided that Landlord may limit the number of operating elevators during non-business hours, during repairs, and Holidays; and freight elevator service on Business Days, upon request of Tenant and subject to scheduling and charges by Landlord. Landlord shall keep all Common Areas in a clean and orderly condition and shall repair any damage thereto and will perform all improvements and repairs then required to comply with all laws (including, without limitation, ADA) affecting the Building and Common Area except for Tenant's obligations set forth herein.

B. If Tenant requests any other utilities or Building services in addition to those identified in Section 6A, or any of the above utilities or Building services in frequency, scope, quality or quantities substantially greater than the standards set by Landlord for the Building, then Landlord shall use reasonable efforts to attempt to furnish Tenant with such additional utilities or Building services. Landlord may impose a reasonable charge for such additional utilities or Building services, which shall be paid monthly by Tenant as Additional Rent on the same day that the monthly installment of Base Rent is due.

C. Except as otherwise expressly provided herein, the failure by Landlord to any extent to furnish, or the interruption or termination of utilities and Building services identified in Section 6A in whole or in part, resulting from adherence to laws, regulations and administrative orders, wear, use, repairs, improvements, alterations or any causes shall not render Landlord liable in any respect nor be construed as an actual or constructive eviction of Tenant, nor give rise to an abatement of Rent, nor relieve Tenant from the obligation to fulfill any covenant or agreement hereof.

D. Notwithstanding anything to the contrary contained in this Section 6, if: (i) Landlord ceases to furnish any service described in Section 6A in the Premises and Common Areas necessary for use of the Premises for a period in excess of five (5) consecutive Business Days after Tenant notifies Landlord of such cessation (the "**Interruption Notice**"); (ii) such cessation does not arise as a result of an act, omission, or negligence of Tenant; (iii) such cessation is not caused by a fire or other casualty (in which case Section 16 shall control); (iv) the restoration of such service is reasonably within the control of Landlord; and (v) as a result of such cessation, the Premises or a material portion thereof, is rendered untenable and Tenant in fact ceases to use the Premises, or material portion thereof, then Tenant, as its sole remedy, shall be entitled to receive an abatement of Base Rent payable hereunder during the period beginning on the sixth (6th) consecutive Business Day of such cessation and ending on the day when the service in question has been restored. In the event the entire Premises has not been rendered untenable by the cessation in service, the amount of abatement that Tenant is entitled to receive shall be prorated based upon the percentage of the Premises so rendered untenable and not used by Tenant. If physical access or use of the Premises or the essential services thereto are materially impaired or obstructed such that Tenant is unable to operate from all or a material portion of the Premises due to events outside of Tenant's control for a period of one hundred eighty (180) consecutive days, Tenant will have the right, as its sole and exclusive remedy, to terminate this Lease by

providing written notice to Landlord of its election to terminate prior to the date that Tenant regains its ability to operate from the Premises.

7. **Leasehold Improvements; Tenant's Property.** All fixtures, equipment, improvements and appurtenances attached to, or built into, the Premises at the commencement of or during the Lease Term, whether or not by, or at the expense of, Tenant ("Leasehold Improvements"), shall be and remain a part of the Premises; shall be the property of Landlord; and shall not be removed by Tenant except as expressly provided herein. All unattached and moveable partitions, trade fixtures, moveable equipment or furniture located in the Premises and acquired by or for the account of Tenant, without expense to Landlord, which can be removed without structural damage to the Building or Premises, and all personalty brought into the Premises by Tenant ("Tenant's Property") shall be owned and insured by Tenant. Landlord may require Tenant to remove any Leasehold Improvements prior to the expiration or earlier termination of this Lease or Tenant's right to possession of the Premises provided Landlord gave Tenant written notice at the time such Leasehold Improvements were approved by Landlord that Tenant must remove them prior to surrender of the Premises (the "Required Removables") at Tenant's sole cost. Upon the termination of the Lease Term or the sooner termination of Tenant's right to possession of the Premises, Tenant shall remove Tenant's Property, all electronic, phone and data cabling exclusively serving the Premises (whether such cabling is located within or outside of the Premises), and all Required Removables. Tenant shall, at its sole cost and expense, repair any damage caused by such removal and perform such other work as is reasonably necessary to restore the Premises to the condition existing prior to its installation, reasonable wear and tear excepted. If Tenant fails to remove any of the foregoing items or to perform any required repairs and restoration, (i) Landlord, at Tenant's sole cost and expense, may remove the same (and repair any damage occasioned thereby) and dispose thereof or deliver such items to any other place of business of Tenant, or warehouse the same, and Tenant shall pay the cost of such removal, repair, delivery, or warehousing of such items within five (5) days after demand from Landlord and (ii) such failure shall be deemed a holding over by Tenant under Section 23 hereof until such failure is rectified by Tenant or Landlord. **Signage.** Tenant shall not install any signage visible from the exterior of the Premises; all signage shall be in the standard graphics for the Building and no others shall be used or permitted without Landlord's prior written consent. Landlord shall provide, at no additional cost to Tenant, Tenant's Pro Rata Share of Building standard listings on the main Building lobby directory. **Maintenance, Repairs and Alterations.** Except to the extent such obligations are imposed upon Landlord hereunder, Tenant shall, at its sole cost and expense, maintain the Premises in good order, condition, and repair throughout the entire Lease Term, ordinary wear and tear excepted. Tenant agrees to keep the areas visible from outside the Premises in a neat, clean and attractive condition at all times. If Tenant fails to so maintain the Premises, Landlord will provide notice to Tenant specifying Tenant's failure and what actions must be taken to comply. If Tenant fails to commence to cure such failure within thirty (30) days after notice and diligently proceed to completion, Landlord will have the right to take such action. Subject to the foregoing, Tenant shall, within thirty (30) days after Landlord's written demand therefor, reimburse Landlord for the cost of all repairs, replacements and alterations (collectively, "**Repairs**") in and to the Premises, Building and Property and the facilities and systems thereof, plus an administration charge of ten percent (10%) of such cost, the need

for which Repairs arises out of (1) Tenant's use or occupancy of the Premises, (2) the installation, removal, use or operation of Tenant's Property or Required Removables, (3) the moving of Tenant's Property and Required Removables into or out of the Building, (4) any Alterations (hereinafter defined), or (5) the act, omission, misuse, or negligence of Tenant, its agents, contractors, employees or invitees.

B. Tenant shall not make or allow to be made any alterations, additions or improvements to the Premises on behalf of Tenant, but excluding Landlord made or provided alterations, additions or improvements to the Premises (collectively, "**Alterations**"), without first obtaining the written consent of Landlord. Prior to commencing any Alterations and as a condition to obtaining Landlord's consent, Tenant shall deliver to Landlord plans and specifications acceptable to Landlord; names and addresses of contractors reasonably acceptable to Landlord; copies of contracts; necessary permits and approvals; evidence of contractor's and subcontractor's insurance in accordance with Section 13 hereof; all in form and amount satisfactory to Landlord. Landlord will use commercially reasonable efforts to approve or disapprove Tenant's request for consent within ten (10) days following receipt of Tenant's delivery of the items above. Tenant shall be responsible for insuring that all such persons procure and maintain insurance coverage against such risks, in such amounts and with such companies as Landlord may reasonably require. All Alterations shall be constructed in a good and workmanlike manner using Building standard materials or other new materials of equal or greater quality. Landlord, to the extent reasonably necessary to avoid any disruption to the tenants and occupants of the Building, shall have the right to designate the time when any Alterations may be performed and to otherwise designate reasonable rules, regulations and procedures for the performance of work in the Building. Upon completion of the Alterations, Tenant shall deliver to Landlord "as-built" plans if required by the city, contractor's affidavits and full and final waivers of lien and receipted bills covering all labor and materials. All Alterations shall comply with the insurance requirements and with applicable codes, ordinances, laws and regulations. Tenant shall reimburse Landlord upon demand for all reasonable out-of-pocket sums, if any, expended by Landlord for third party examination of the architectural, mechanical, electrical and plumbing plans for any Alterations within thirty (30) days following receipt of documented evidence of payment of such amounts. In addition, if Landlord so requests, Landlord shall be entitled to oversee the construction of any Alterations that may affect the structure of the Building or any of the mechanical, electrical, plumbing or life safety systems of the Building. If Landlord elects to oversee such work, Landlord shall be entitled to receive a fee for such oversight in an amount equal to ten percent (10%) of the cost of such Alterations. Landlord's approval of Tenant's plans and specifications for any Alterations performed for or on behalf of Tenant shall not be deemed to be representation by Landlord that such plans and specifications comply with applicable insurance requirements, building codes, ordinances, laws or regulations or that the Alterations constructed in accordance with such plans and specifications will be adequate for Tenant's use.

10. **Use of Electrical Services by Tenant.** All electricity used by Tenant in the Premises shall be paid for by Tenant as set forth in **Exhibit C** attached hereto (except as provided below with respect to excess usage). Landlord shall have the right at any time and from time-to-time during the Lease Term to contract for electricity service from such providers of such

services as Landlord shall elect (each being an "**Electric Service Provider**"). Tenant shall cooperate with Landlord, and the applicable Electric Service Provider, at all times and, as reasonably necessary, shall allow Landlord and such Electric Service Provider reasonable access to the Building's electric lines, feeders, risers, wiring, and any other machinery within the Premises. Tenant's use of electrical services furnished by Landlord shall not exceed in voltage, rated capacity, or overall load that which is standard for the Building. In the event Tenant shall request that it be allowed to consume electrical services in excess of Building standard, Landlord may refuse to consent to such usage or may consent upon such conditions as Landlord reasonably elects, and all such additional usage shall be paid for by Tenant as Additional Rent. Landlord, at any time during the Lease Term, shall have the right to separately meter electrical usage for the Premises or to measure electrical usage by survey or any other method that Landlord, in its reasonable judgment, deems appropriate. **Assignment and Subletting.** Except in connection with a Permitted Transfer (defined in Section 11E below), Tenant shall not assign, sublease, transfer or encumber any interest in this Lease or allow any third party to use any portion of the Premises (collectively or individually, a "**Transfer**") without the prior written consent of Landlord, which consent shall not be unreasonably withheld with respect to a proposed sublease or assignment (other than a collateral assignment, in which case Landlord may withhold its consent in its sole and absolute discretion). Without limitation, it is agreed that Landlord's consent shall not be considered unreasonably withheld if: (1) the proposed transferee's financial condition is not adequate for the obligations such transferee is assuming in connection with the proposed Transfer; (2) the transferee's business or reputation is not suitable for the Building considering the business and reputation of the other tenants and the Building's prestige, or would result in a violation of another tenant's rights under its lease at the Building; (3) the transferee is a governmental agency or occupant of the Building; (4) Tenant is in default beyond any applicable notice and cure period; (5) any portion of the Building or the Premises would likely become subject to additional or different laws as a consequence of the proposed Transfer; or (6) Landlord or its leasing agent has received a proposal from or made a proposal to the proposed transferee to lease space in the Building within six (6) months prior to Tenant's delivery of written notice of the proposed Transfer to Landlord. Any attempted Transfer in violation of this Section 11, shall, exercisable in Landlord's sole and absolute discretion, be void. Consent by Landlord to one or more Transfers shall not operate as a waiver of Landlord's rights to approve any subsequent Transfers. If Landlord withholds its consent to any Transfer contrary to the provisions of this Section 11, Tenant's sole remedy shall be to seek an injunction in equity to compel performance by Landlord to give its consent and Tenant expressly waives any right to damages in the event of such withholding by Landlord of its consent. In no event shall any Transfer or Permitted Transfer release or relieve Tenant from any obligation under this Lease or any liability hereunder.

B. If Tenant requests Landlord's consent to a Transfer, Tenant shall submit to Landlord (i) financial statements for the proposed transferee, (ii) a copy of the proposed assignment or sublease, and (iii) such other information as Landlord may reasonably request. Within fifteen (15) days following Landlord's receipt of the required information and documentation, Landlord shall either: (1) consent or reasonably refuse consent to the Transfer in writing; (2) in the event of a proposed assignment of this Lease, terminate this Lease effective the first to occur of ninety (90) days following written notice of such

termination or the date that the proposed Transfer would have come into effect; and (3) in the event of a proposed subletting, terminate this Lease with respect to the portion of the Premises which Tenant proposes to sublease effective the first to occur of ninety (90) days following written notice of such termination or the date the proposed Transfer would have come into effect. Tenant will have the right by providing notice to Landlord within ten (10) days following receipt of written notice from Landlord electing to exercise its terminate right under (2) or (3) above to withdraw its request for consent and in such event, this Lease will continue and Tenant's request will be deemed to be disapproved. Tenant shall pay Landlord a review fee of One Thousand and No/100 Dollars (\$1,000.00) for Landlord's review of any Permitted Transfer or proposed Transfer. In addition, Tenant shall reimburse Landlord for its actual reasonable costs and expenses (including, without limitation, reasonable attorney's fees) incurred by Landlord in connection with Landlord's review of such proposed Transfer or Permitted Transfer in an amount not to exceed Five Thousand and No/100 Dollars (\$5,000.00).

C. Tenant shall pay to Landlord fifty percent (50%) of all cash and other consideration which Tenant receives as a result of a Transfer that is in excess of the Rent payable to Landlord hereunder for the portion of the Premises and Lease Term covered by the Transfer within ten (10) days following receipt thereof by Tenant.

D. Except as provided below with respect to a Permitted Transfer, if Tenant is a corporation, limited liability company, partnership or similar entity, and the person, persons or entity which owns or controls a majority of the voting interests at the time changes for any reason (including but not limited to a merger, consolidation or reorganization), such change of ownership or control shall constitute a Transfer. The foregoing shall not apply so long as Tenant is an entity whose outstanding stock is listed on a nationally recognized security exchange, or if at least eighty percent (80%) of its voting stock is owned by another entity, the voting stock of which is so listed.

E. Permitted Transfers Without Landlord's Consent. Tenant may assign its entire interest under this Lease or sublet the Premises (i) to any entity controlling or controlled by or under common control with Tenant or (ii) to any successor to Tenant by purchase, merger, consolidation or reorganization or (iii) a public offering or transfer of Tenant's or Tenant's Affiliate's stock pursuant to the Securities Act of 1933 and/or Securities Exchange Act of 1934, as amended; or (iv) a transfer of equity between the current shareholders of Tenant, Tenant's Affiliate, or any Guarantor and their spouses, children, and grandchildren (hereinafter "**Tenant Owners**"), by inter vivos or testamentary transfer, or to any corporation, trust, or other entity controlled by or held for the benefit of the Tenant Owners; or (v) the issuance of additional stock in a private placement; or (vi) the transfer of Tenant's equity to its employees pursuant to an employee ownership program or other arrangement with one or more of its employees (hereinafter, collectively, referred to as "**Permitted Transfer**") without the consent of Landlord, provided: (1) Tenant is not in default under this Lease; (2) if such proposed transferee is a successor to Tenant by purchase [(ii) above], said proposed transferee shall acquire all or substantially all of the stock or assets of Tenant's business or, if such proposed transferee is a successor to Tenant by merger, consolidation or reorganization, the continuing or surviving entity shall own all or

substantially all of the assets of Tenant; (3) with respect to a Permitted Transfer to a proposed transferee described in clause (ii), such proposed transferee shall have a tangible net worth which is at least equal to the greater of Tenant's tangible net worth at the date of this Lease or Tenant's tangible net worth as of the day prior to the proposed purchase, merger, consolidation or reorganization as evidenced to Landlord's reasonable satisfaction; (4) the issuance or transfer in clauses (v) and (vi), as applicable, does not change the possession, direct or indirect, of the power to direct or cause the direction of the management and policies of Tenant, or the ownership, directly or indirectly, of the majority of the voting securities of, or possession of the right to vote, in the ordinary direction of its affairs, of the majority of the voting interest in, Tenant; and (5) Tenant shall give Landlord written notice at least fifteen (15) days prior to the effective date of the proposed purchase, merger, consolidation or reorganization.

12. **Mechanic's Liens.** Tenant will not permit any mechanic's liens or other liens to be placed upon the Property. If a lien is attached to the Property, then, in addition to any other right or remedy of Landlord, Landlord may, but shall not be obligated to, discharge the same if Tenant fails to remove or bond over such lien within ten (10) days of Tenant's actual knowledge of such lien. Any amount paid by Landlord for any of the aforesaid purposes including, but not limited to, reasonable attorneys' fees, shall be paid by Tenant to Landlord within thirty (30) days after demand as Additional Rent. Tenant shall within ten (10) days of receiving such notice of lien or claim have such lien or claim released of record or bonded over. Tenant's failure to comply with the provisions of the foregoing sentence shall be deemed an Event of Default entitling Landlord to exercise all of its remedies therefor without the requirement of any additional notice or cure period. **Insurance.** Landlord shall, at all times during the Lease Term, procure and maintain: (i) policies of insurance covering loss or damage to the Property in an amount equal to the full replacement cost of the Building, including leasehold improvements in the Premises, which shall provide protection against loss by fire and other special form casualties including earthquake and flood and such other property insurance as may be required by Landlord's mortgagee or as otherwise desired by Landlord, and (ii) commercial general liability insurance applicable to the Building and the Common Areas, providing a minimum limit of \$3,000,000.00 per occurrence.

B. **Tenant shall** procure and maintain, at its expense, (i) causes of loss – special form property insurance in an amount equal to the full replacement cost of Tenant's Property located in the Premises; (ii) a policy or policies of commercial general liability and umbrella or excess liability insurance applying to Tenant's operations and use of the Premises, providing a minimum combined limit of \$3,000,000.00 in the aggregate, naming Landlord, Landlord's Building manager and any lender whose loan is secured by a lien against the Building (as such lender shall be identified to Tenant by Landlord in writing) as additional insureds, (iii) automobile liability insurance covering owned (as applicable), non-owned and hired vehicles in an amount not less than a combined single limit of \$1,000,000.00 per accident, and (iv) workers' compensation insurance covering Tenant's employment of workers and anyone for whom Tenant may be liable for workers' compensation claims (workers' compensation insurance is required and no alternative forms of insurance are permitted) and employer's liability insurance in an amount not less than \$1,000,000.00 each accident, \$1,000,000.00 disease-each employee and policy limit, with the insurance policies

required under this clause (iv) to be endorsed to waive the insurance carriers' right of subrogation. Tenant shall maintain the foregoing insurance coverages in effect commencing on the earlier to occur of the Commencement Date and the date Tenant takes possession of the Premises, and continuing to the end of the Lease Term.

C. The insurance requirements set forth in this Section 13 are independent of the waiver, indemnification, and other obligations under this Lease and will not be construed or interpreted in any way to restrict, limit or modify the waiver, indemnification and other obligations or to in any way limit any party's liability under this Lease. In addition to the requirements set forth in Sections 13 and 14, the insurance required of Tenant under this Lease must be issued by an insurance company with a rating of no less than A-/VIII in the current Best's Insurance Guide or that is otherwise acceptable to Landlord, and admitted to engage in the business of insurance in the state in which the Building is located; be on a form that does not limit the coverage provided under such policy (i) to any additional insured by reason of such additional insured's negligent acts or omissions (sole or otherwise), or (ii) to claims for which a primary insured has agreed to indemnify the additional insured; be primary insurance for all claims under it and provide that any insurance carried by Landlord, Landlord's Building manager, and Landlord's lenders is strictly excess, secondary and noncontributing with any insurance carried by Tenant; and provide that insurance may not be cancelled, nonrenewed or the subject of change in coverage of available limits of coverage, except upon thirty (30) days' prior written notice to Landlord and Landlord's lenders. Tenant will deliver to Landlord a legally enforceable certificate of insurance on all policies procured by Tenant in compliance with Tenant's obligations under this Lease on or before the date Tenant first occupies any portion of the Premises, at least ten (10) days before the expiration date of any policy and upon the renewal of any policy. Landlord shall have the right to approve all deductibles and self-insured retentions under Tenant's policies, which approval shall not be unreasonably withheld, conditioned or delayed.

D. Notwithstanding anything to the contrary set forth herein, neither Landlord nor Tenant shall be liable (by way of subrogation or otherwise) to the other party (or to any insurance company insuring the other party) for any loss or damage to any of the property of Landlord or Tenant, as the case may be, with respect to their respective property, the Building, the Property or the Premises or any addition or improvements thereto, or any contents therein, to the extent covered by insurance carried or required to be carried by a party hereto **EVEN THOUGH SUCH LOSS MIGHT HAVE BEEN OCCASIONED BY THE NEGLIGENCE OR WILLFUL ACTS OR OMISSIONS OF THE LANDLORD OR TENANT OR THEIR RESPECTIVE EMPLOYEES, AGENTS, CONTRACTORS OR INVITEES.** Landlord and Tenant shall give each insurance company which issues policies of insurance, with respect to the items covered by this waiver, written notice of the terms of this mutual waiver and release, and shall have such insurance policies properly endorsed, if necessary, to prevent the invalidation of any of the coverage provided by such insurance policies by reason of such mutual waiver. For the purpose of the foregoing waiver, the amount of any deductible applicable to any loss or damage shall be deemed covered by, and recoverable by the insured under the insurance policy to which such deductible relates.

14. **Indemnity.** To the extent not expressly prohibited by law, Landlord and Tenant each (in either case, the "**Indemnitor**") agree to hold harmless and indemnify the other and the other's agents, partners, shareholders, members, officers, directors, beneficiaries and employees (collectively, the "**Indemnitees**") from any losses, damages, judgments, claims, expenses, costs and liabilities imposed upon or incurred by or asserted against the Indemnitees, including without limitation reasonable attorneys' fees and expenses, for death or injury to, or damage to property of, third parties, other than the Indemnitees, that may arise from (a) the negligence or willful misconduct of Indemnitor or any of Indemnitor's agents, members, partners or employees or (b) the breach of the terms of this Lease. Such third parties shall not be deemed third party beneficiaries of this Lease. If any action, suit or proceeding is brought against any of the Indemnitees by reason of the negligence or willful misconduct of Indemnitor or any of Indemnitor's agents, members, partners or employees, then Indemnitor will, at Indemnitor's expense and at the option of said Indemnitees, by counsel reasonably approved by said Indemnitees, resist and defend such action, suit or proceeding. In addition, to the extent not expressly prohibited by law, Tenant agrees to hold harmless and indemnify Landlord and Landlord's Indemnitees from any losses, damages, judgments, claims, expenses, costs and liabilities imposed upon or incurred by or asserted against Landlord or Landlord's Indemnitees, including reasonable attorneys' fees and expenses, for death or injury to, or damage to property of, third parties (other than Landlord's Indemnitees) that may arise from any act or occurrence in the Premises, **EVEN IF SUCH DEATH OR INJURY OR DAMAGE RESULTS FROM THE NEGLIGENCE (BUT NOT THE GROSS NEGLIGENCE OR WILLFUL MISCONDUCT) OF LANDLORD OR LANDLORD'S INDEMNITEES.** **Damages from Certain Causes.** To the extent not expressly prohibited by law, Landlord shall not be liable to Tenant or Tenant's employees, contractors, agents, invitees, or customers, for any injury to person or damage to property sustained by Tenant or any such party or any other person claiming through Tenant resulting from any accident or occurrence in the Premises or any other portion of the Building caused by the Premises or any other portion of the Building arising out of repair or by defect in or failure of equipment, pipes, or wiring, or by broken glass, or by the backing up of drains, or by gas, water, steam, electricity, or oil leaking, escaping or flowing into the Premises (except where due to Landlord's grossly negligent or willful failure to make repairs required to be made pursuant to other provisions of this Lease, after the expiration of a reasonable time after written notice to Landlord of the need for such repairs), **EVEN IF SUCH DAMAGE RESULTS FROM THE NEGLIGENCE OF LANDLORD OR ITS PARTNERS OR THEIR RESPECTIVE PARTNERS, MEMBERS, AGENTS OR EMPLOYEES**, nor shall Landlord be liable to Tenant for any loss or damage that may be occasioned by or through the acts or omissions of other tenants of the Building or of any other persons whomsoever, including, but not limited to riot, strike, insurrection, war, court order, requisition, order of any governmental body or authority, acts of God, fire or theft. **Casualty Damage.** If the Premises or any part thereof shall be damaged by fire or other casualty, Tenant shall give prompt written notice thereof to Landlord. In case the Building shall be so damaged that substantial alteration or reconstruction of the Building shall, in Landlord's sole, but reasonable, opinion, be required (whether or not the Premises shall have been damaged by such casualty) or in the event there is less than two (2) years of the Lease Term remaining or in the event Landlord's mortgagee should require that the insurance

proceeds payable as a result of a casualty be applied to the payment of the mortgage debt or in the event of any material uninsured loss to the Building, Landlord may, at its option, terminate this Lease by notifying Tenant in writing of such termination within thirty (30) days after the date of such casualty. If Landlord does not thus elect to terminate this Lease, Landlord shall commence and proceed with reasonable diligence to restore the Building, and the improvements located within the Premises to substantially the same condition in which it was immediately prior to the happening of the casualty. Notwithstanding the foregoing, Landlord's obligation to restore the Building, and the improvements located within the Premises shall not require Landlord to expend for such repair and restoration work more than the sum of the deductible or self-insured retention and the insurance proceeds actually received by Landlord as a result of the casualty. When the repairs described in the preceding two sentences have been completed by Landlord, Tenant shall complete the restoration of all furniture, fixtures and equipment which are necessary to permit Tenant's reoccupancy of the Premises. Landlord shall not be liable for any inconvenience or annoyance to Tenant or injury to the business of Tenant resulting in any way from such damage or the repair thereof, except that Rent shall be abated from the date of the damage or destruction for any portion of the Premises that is unusable by Tenant, which abatement shall be in the same proportion that the Rentable Area of the Premises which is unusable by Tenant bears to the total Rentable Area of the Premises; provided that Tenant shall not be entitled to any abatement of Rent if the damage or destruction in the Premises is restored within five (5) Business Days after Landlord's receipt of written notice from Tenant of the occurrence of the damage or destruction. If Landlord fails to complete the repair, reconstruction and restoration of a material portion of the Building or Premises within twelve (12) months from the date of the damage, Tenant will have the right to terminate this Lease by providing written notice to Landlord prior to the date that Landlord completes the repair, reconstruction and/or restoration of the Building or Premises. **Condemnation.** If the whole or any substantial part of the Premises or if the Building or any portion thereof which would leave the remainder of the Building unsuitable for use comparable to its use on the Commencement Date, or if the land on which the Building is located or any material portion thereof, shall be taken or condemned for any public or quasi-public use under governmental law, ordinance or regulation, or by right of eminent domain, or by private purchase in lieu thereof, then Landlord may, at its option, terminate this Lease and Rent shall be abated during the unexpired portion of this Lease, effective when the physical taking of said Premises or said portion of the Building or land shall occur. If this Lease is not terminated, the rent for any portion of the Premises so taken or condemned shall be abated during the unexpired Lease Term effective when the physical taking of said portion of the Premises shall occur. All compensation awarded for any taking or condemnation, or sale proceeds in lieu thereof, shall be the property of Landlord, and Tenant shall have no claim thereto, the same being hereby expressly waived by Tenant, except for any portions of such award or proceeds which are specifically allocated by the condemning or purchasing party for the taking of or damage to trade fixtures of Tenant and moving costs, which Tenant specifically reserves to itself. **Events of Default.** The following events shall be deemed to be "**Events of Default**" under this Lease: (i) Tenant fails to pay any Rent when due; provided that the first (1st) such failure during any consecutive twelve (12) month period during the Lease Term shall not be an Event of Default if Tenant pays the amount due within three (3) days after notice from

Landlord that such payment was not made when due, (ii) Tenant fails to perform any other provision of this Lease not described in this Section 18, and such failure is not cured within thirty (30) days (or immediately if the failure involves a hazardous condition) after notice from Landlord, however, other than with respect to a hazardous condition, if Tenant's failure to comply cannot reasonably be cured within thirty (30) days, Tenant shall be allowed additional time (not to exceed thirty (30) additional days) as is reasonably necessary to cure the failure so long as Tenant begins the cure within thirty (30) days and diligently pursues the cure to completion; (iii) Tenant fails to observe or perform any of the covenants with respect to (a) assignment and subletting as set forth in Section 11, (b) mechanic's liens as set forth in Section 12, or (c) insurance as set forth in Section 13 or (d) delivering subordination agreements or estoppel certificates as set forth in Section 24, (iv) the leasehold interest of Tenant is levied upon or attached under process of law and not released within sixty (60) days; (v) Tenant or any guarantor of this Lease dies or dissolves; (vi) Tenant abandons or vacates the Premises with the intent not to reoccupy; or (vii) any voluntary or involuntary proceedings are filed by or against Tenant or any guarantor of this Lease under any bankruptcy, insolvency or similar laws and, in the case of any involuntary proceedings, are not dismissed within sixty (60) days after filing. **Remedies.** Upon the occurrence of any Event of Default, Landlord shall have the following rights and remedies, in addition to those allowed by law and/or equity, any one or more of which may be exercised without further notice to or demand upon Tenant and which may be pursued successively or cumulatively as Landlord may elect:

- (1) Landlord may re-enter the Premises and attempt to cure any default of Tenant, in which event Tenant shall, upon demand, reimburse Landlord as Additional Rent for all reasonable costs and expenses which Landlord incurs to cure such default;
- (2) Landlord may terminate this Lease by giving to Tenant notice of Landlord's election to do so, in which event the Lease Term shall end, and all right, title and interest of Tenant hereunder shall expire, on the date stated in such notice;
- (3) Landlord may terminate the right of Tenant to possession of the Premises without terminating this Lease by giving notice to Tenant that Tenant's right to possession shall end on the date stated in such notice, whereupon the right of Tenant to possession of the Premises or any part thereof shall cease on the date stated in such notice; and
- (4) Landlord may enforce the provisions of this Lease by a suit or suits in equity or at law for the specific performance of any covenant or agreement contained herein, or for the enforcement of any other appropriate legal or equitable remedy, including recovery of all moneys due or to become due from Tenant under any of the provisions of this Lease.

Landlord shall not be required to serve Tenant with any notices or demands as a prerequisite to its exercise of any of its rights or remedies under this Lease, other than those notices and demands specifically required under this Lease. In order to regain possession of the Premises

and to deny Tenant access thereto, Landlord or its agent may, except to the extent in violation of applicable law, at the expense and liability of the Tenant, alter or change any or all locks or other security devices controlling access to the Premises without posting or giving notice of any kind to Tenant and Landlord shall have no obligation to provide Tenant a key to new locks installed in the Premises or grant Tenant access to the Premises. Tenant shall not be entitled to recover possession of the Premises, terminate this Lease, or recover any actual, incidental, consequential, punitive, statutory, or other damages or award of attorneys' fees, by reason of Landlord's alteration or change of any lock or other security device and the resulting exclusion from the Premises of the Tenant or Tenant's agents, servants, employees, customers, licensees, invitees or any other persons from the Premises. Landlord may, without notice, remove and either dispose of or store, at Tenant's expense, any property belonging to Tenant that remains in the Premises after Landlord has regained possession thereof. Tenant acknowledges that the provisions of this subparagraph of this Lease supersede the Texas Property Code and Tenant further warrants and represents that it hereby knowingly waives any rights it may have thereunder. **TENANT EXPRESSLY WAIVES THE SERVICE OF ANY STATUTORY DEMAND OR NOTICE WHICH IS A PREREQUISITE TO LANDLORD'S COMMENCEMENT OF EVICTION PROCEEDINGS AGAINST TENANT, INCLUDING THE DEMANDS AND NOTICES SPECIFIED IN ANY APPLICABLE STATE STATUTE OR CASE LAW. TENANT KNOWINGLY AND VOLUNTARILY WAIVES ANY RIGHT TO TRIAL BY JURY IN ANY LAWSUIT BROUGHT BY LANDLORD TO RECOVER POSSESSION OF THE PREMISES FOLLOWING LANDLORD'S TERMINATION OF THIS LEASE OR THE RIGHT OF TENANT TO POSSESSION OF THE PREMISES PURSUANT TO THE TERMS OF THIS LEASE AND ON ANY CLAIM FOR DELINQUENT RENT WHICH LANDLORD MAY JOIN IN ITS LAWSUIT TO RECOVER POSSESSION. LANDLORD IS HEREBY AUTHORIZED TO FILE A COPY OF THIS PARAGRAPH IN ANY PROCEEDING AS CONCLUSIVE EVIDENCE OF THE FOREGOING WAIVER.**

B. If Landlord exercises either of the remedies provided in Sections 19A(2) or 19A(3), Tenant shall surrender possession and vacate the Premises and immediately deliver possession thereof to Landlord, and Landlord may re-enter and take complete and peaceful possession of the Premises, without process of law, and Landlord may remove all occupants and property therefrom, using such force as may be necessary to the extent allowed by law, without being deemed guilty in any manner of trespass, eviction or forcible entry and detainer and without relinquishing Landlord's right to Rent or any other right given to Landlord hereunder or by operation of law.

C. If Landlord terminates the right of Tenant to possession of the Premises without terminating this Lease, Landlord shall have the right to immediate recovery of all amounts then due hereunder. Such termination of possession shall not release Tenant, in whole or in part, from Tenant's obligation to pay Rent hereunder for the full Lease Term, and Landlord shall have the right, from time to time, to recover from Tenant, and Tenant shall remain liable for, all Rent accruing as it becomes due under this Lease during the period from the date of such notice of termination of possession to the stated end of the Lease Term. In any such case, Landlord shall make reasonable efforts, in accordance with Section 19E

hereof, to relet the Premises. In attempting to relet the Premises, Landlord may make repairs, alterations and additions in or to the Premises and redecorate the same to the extent reasonably deemed by Landlord necessary or desirable, and Tenant upon demand shall pay the reasonable cost of all of the foregoing together with Landlord's reasonable expenses of reletting. The rents from any such reletting shall be applied first to the payment of the expenses of reentry, redecoration, repair and alterations and the expenses of reletting (including reasonable attorneys' fees and brokers' fees and commissions) and second to the payment of Rent herein provided to be paid by Tenant. Any excess or residue shall operate only as an offsetting credit against the amount of Rent due and owing as the same thereafter becomes due and payable hereunder.

D. If this Lease is terminated by Landlord, Landlord shall be entitled to recover from Tenant all Rent accrued and unpaid for the period up to and including such termination date, as well as all other additional sums payable by Tenant, or for which Tenant is liable or for which Tenant has agreed to indemnify Landlord, which may be then owing and unpaid, and all reasonable and necessary costs and expenses, including court costs and reasonable attorneys' fees incurred by Landlord in the enforcement of its rights and remedies hereunder. In addition, Landlord shall be entitled to recover as damages for loss of the bargain and not as a penalty (1) the unamortized portion of any concessions offered by Landlord to Tenant in connection with this Lease, including without limitation Landlord's contribution to the cost of tenant improvements, if any, installed by either Landlord or Tenant pursuant to this Lease or any work letter in connection with this Lease, (2) the aggregate sum which at the time of such termination represents the excess, if any, of the present value of the aggregate Rent which would have been payable after the termination date had this Lease not been terminated, including, without limitation, the amount projected by Landlord to represent Additional Rent for the remainder of the Lease Term, over the then present value of the then aggregate fair rent value of the Premises for the balance of the Lease Term, such present worth to be computed in each case on the basis of a three percent (3%) per annum discount from the respective dates upon which such Rent would have been payable hereunder had this Lease not been terminated, and (3) any damages in addition thereto, including without limitation reasonable attorneys' fees and court costs, which Landlord sustains as a result of the breach of any of the covenants of this Lease other than for the payment of Rent.

E. Landlord shall use commercially reasonable efforts to mitigate any damages resulting from an Event of Default by Tenant under this Lease. Landlord's obligation to mitigate damages after an Event of Default by Tenant under this Lease shall be satisfied in full if Landlord undertakes to lease the Premises to another tenant (a "**Substitute Tenant**") in accordance with the following criteria: (1) Landlord shall have no obligation to solicit or entertain negotiations with any other prospective tenants for the Premises until Landlord obtains full and complete possession of the Premises including, without limitation, the final and unappealable legal right to relet the Premises free of any claim of Tenant; (2) Landlord shall not be obligated to lease or show the Premises, on a priority basis, or offer the Premises to a prospective tenant when other premises in the Building suitable for that prospective tenant's use are (or soon will be) available; (3) Landlord shall not be obligated to lease the Premises to a Substitute Tenant for a rent less than the current fair market rent then prevailing for similar uses in comparable buildings in the same market area as the Building, nor shall

Landlord be obligated to enter into a new lease under other terms and conditions that are unacceptable to Landlord under Landlord's then current leasing policies for comparable space in the Building; (4) Landlord shall not be obligated to enter into a lease with a Substitute Tenant whose use would: (i) violate any restriction, covenant, or requirement contained in the lease of another tenant of the Building; (ii) adversely affect the reputation of the Building; or (iii) be incompatible with the operation of the Building; and (5) Landlord shall not be obligated to enter into a lease with any proposed Substitute Tenant which does not have, in Landlord's reasonable opinion, sufficient financial resources to operate the Premises in a first class manner and to fulfill all of the obligations in connection with the lease thereof as and when the same become due.

F. The receipt by Landlord of less than the full Rent due shall not be construed to be other than a payment on account of Rent then due, nor shall any statement on Tenant's check or any letter accompanying Tenant's check be deemed an accord and satisfaction, and Landlord may accept such payment without prejudice to Landlord's right to recover the balance of the Rent due or to pursue any other remedies provided in this Lease. The acceptance by Landlord of Rent hereunder shall not be construed to be a waiver of any breach by Tenant of any term, covenant or condition of this Lease. No act or omission by Landlord or its employees or agents during the term of this Lease shall be deemed an acceptance of a surrender of the Premises, and no agreement to accept such a surrender shall be valid unless in writing and signed by Landlord.

G. In the event of any litigation between Tenant and Landlord to enforce or interpret any provision of this Lease or to enforce any right of either party hereto, the unsuccessful, non-prevailing (as defined by Texas law) party to such litigation shall pay to the successful, prevailing party (as defined by Texas law) all costs and expenses, including reasonable attorney's fees, incurred therein.

H. All property of Tenant removed from the Premises by Landlord pursuant to any provision of this Lease or applicable law may be handled, removed or stored up to thirty (30) days by Landlord at the cost and expense of Tenant, and Landlord shall not be responsible in any event for the value, preservation, or safekeeping thereof. Tenant shall pay Landlord for all costs incurred by Landlord with respect to such removal and storage so long as the same is in Landlord's possession or under Landlord's control. All such property not removed from the Premises or retaken from storage by Tenant within thirty (30) days after the end of the Lease Term or termination of Tenant's right to possession of the Premises, however terminated, at Landlord's option, shall be conclusively deemed to have been conveyed by Tenant to Landlord by bill of sale with general warranty of title without further payment or credit by Landlord to Tenant.

20. **No Waiver.** Failure of either party to declare any default immediately upon its occurrence, or delay in taking any action in connection with an event of default, shall not constitute a waiver of such default, nor shall it constitute an estoppel against the non-defaulting party, but the non-defaulting party shall have the right to declare the default at any time and take such action as is lawful or authorized under this Lease. Failure by non-defaulting party to enforce its rights with respect to any one default shall not constitute a

waiver of its rights with respect to any subsequent default. **Peaceful Enjoyment.** Tenant shall, and may peacefully have, hold, and enjoy the Premises, subject to the other terms hereof, by anyone claiming by, through, or under Landlord, provided that Tenant pays the Rent and other sums herein recited to be paid by Tenant and timely performs all of Tenant's covenants and agreements herein contained. **Substitution.** Landlord at its sole discretion shall be entitled to cause Tenant to relocate from the Premises to a comparably-sized space, of comparable or better design and tenant improvements (the "**Relocation Space**") within the Building or adjacent buildings within the same Property at any time upon sixty (60) days' prior written notice to Tenant. The reasonable costs actually incurred in connection with the physical relocation of the Tenant to the Relocation Space shall be at the expense of Landlord. Such a relocation shall not terminate or otherwise affect or modify this Lease except that from and after the date of such relocation, "Premises" shall refer to the Relocation Space into which Tenant has been moved, rather than the original Premises as herein defined and the Base Rent shall be adjusted so that immediately following such relocation the Base Rent for the Relocation Space on a per square foot of rentable area basis shall be the same as the Base Rent immediately prior to such relocation for the original Premises on a per square foot of rentable area basis. Tenant's Pro Rata Share shall also be adjusted in accordance with the formula set forth in this Lease. **Holding Over.** If Tenant continues to occupy the Premises after the expiration or other termination of this Lease or the termination of Tenant's right of possession, such occupancy shall be that of a tenancy at sufferance. Tenant shall, throughout the entire holdover period, be subject to all the terms and provisions of this Lease and shall pay for its use and occupancy an amount (on a per month basis without reduction for any partial months during any such holdover) equal to one hundred fifty percent (150%) of the Base Rent and Additional Rent due under this Lease for the last full month of the term hereof during the first thirty (30) days of such holdover, and two hundred percent (200%) of such Base Rent and Additional Rent thereafter during such holdover. No holding over by Tenant or payments of money by Tenant to Landlord after the expiration of the Lease Term shall be construed to extend the Lease Term or prevent Landlord from recovery of immediate possession of the Premises by summary proceedings or otherwise Tenant shall also be liable to Landlord for all direct and consequential damages which Landlord may suffer by reason of any holding over by Tenant.

24. **Subordination to Mortgage; Estoppel Certificate.** Tenant accepts this Lease subject and subordinate to any ground lease, mortgage, deed of trust or other lien presently existing or hereafter arising upon the Premises, or upon the Building or the Property and to any renewals, modifications, refinancings and extensions thereof provided that, as a condition precedent to the subordination of this Lease to any such future ground lease, mortgage, deed of trust or other lien, Landlord must deliver to Tenant from any such future mortgagee, trustee, fee owner, prime lessor or any person having an interest in the Premises superior to this Lease a written subordination and non-disturbance agreement in recordable, commercially reasonable form providing that so long as Tenant performs all of the terms of this Lease, Tenant's rights under this Lease shall not be disturbed and shall remain in full force and effect for the term, except as this Lease may be otherwise terminated pursuant to its terms, and Tenant shall not be joined by the holder of any mortgage or deed of trust in any action or proceeding to foreclose thereunder. Tenant agrees that any such mortgagee shall have the right at any time to subordinate such mortgage, deed of trust or other lien to

this Lease on such terms and subject to such conditions as such mortgagee may deem appropriate in its discretion. Tenant shall attorn to any purchaser of the Property or to the holder of any such mortgage or deed of trust in the event that any of the same succeed to the Landlord's interest under this Lease. The foregoing provisions of this Section shall be self-operative and no further instrument of subordination or attornment shall be required. However, Landlord is hereby irrevocably vested with full power and authority to subordinate this Lease to any mortgage, deed of trust or other lien now existing or hereafter placed upon the Premises, or the Building or the Property and Tenant agrees within ten (10) days after written demand to execute such further instruments subordinating this Lease or attorning to the holder of any such liens as Landlord may request. If Tenant refuses to execute any commercially reasonable subordination or other agreement or certificate required by this Section promptly as requested, Tenant hereby irrevocably constitutes Landlord as its attorney-in-fact to execute such instrument in Tenant's name, place and stead, it being agreed that such power is coupled with an interest in Landlord and is accordingly irrevocable. Tenant agrees that it shall from time-to-time furnish within ten (10) days after so requested by Landlord, a certificate signed by Tenant certifying as to such matters as may be reasonably requested by Landlord. Any such certificate may be relied upon by any ground lessor, prospective purchaser, secured party, mortgagee or any beneficiary under any mortgage, deed of trust on the Building or the Property or any part thereof or interest of Landlord therein.

25. **Notice.** Wherever any notice is required or permitted hereunder such notice shall be in writing. Any notice or document required or permitted to be delivered hereunder shall be deemed to be delivered (i) whether actually received or not one business day after the date deposited with a reputable national overnight courier company (e.g., FedEx), with the requirement of a signature upon delivery, or (ii) subject to the remainder of this Section below with respect to e-mail notices, on the date transmitted by e-mail, provided that (A) such e-mail is sent on a Business Day during the hours of 8 a.m. to 6 p.m. Central Standard Time, and (B) the sender either (1) follows such e-mail with a written notice in the form of romanette (i) above, or (2) actually confirms receipt of such e-mail by the recipient thereof (by actual receipt by the sender of an email from the recipient confirming receipt, by a "read receipt" confirmation actually confirming such e-mail was received and opened by the notice recipient, or other similar means), which in any case shall be addressed to the parties hereto at the respective addresses and/or e-mail addresses set out in Section 1U above, or at such other addresses as they may have hereafter specified by written notice sent in accordance with this Section. Notwithstanding the foregoing, e-mail notice delivery pursuant to romanette (ii) above shall not be permitted in the case where (I) the transmission declares that the writing is a notice of default or a notice of an Event of Default, or (II) the transmission declares words to the effect that the transmission is a "second", "reminder", or "final" notice where the recipient party's failure to respond within the specified time period will have certain consequences, such as deemed approval, or the like. With respect to e-mail notices, each party hereby agrees to timely respond to the other party (or to the respective other party's attorney(s), as the case may be) to evidence receipt of an e-mail following such party's actual receipt thereof. Either party may have its legal counsel or, with respect to Landlord, its property manager, send notice as provided above, and such notice shall be deemed effective for all purposes under this Lease.

26. **Surrender of Premises.** Upon the termination of the Lease Term, or upon any termination of Tenant's right to possession of the Premises, Tenant will at once surrender possession of the Premises to Landlord in good condition and repair, ordinary wear and tear excepted. Tenant shall surrender to Landlord all keys to the Premises and make known to Landlord the combination of all combination locks which Tenant is required to leave on the Premises. **Rights Reserved to Landlord.** Landlord reserves the following rights, exercisable without notice, except as provided herein, and without liability to Tenant for damage or injury to property, person or business and without affecting an eviction or disturbance of Tenant's use or possession or giving rise to any claim for setoff or abatement of rent or affecting any of Tenant's obligations under this Lease: (1) upon thirty (30) days' prior notice to change the name or street address of the Building; (2) to install and maintain signs on the exterior and interior of the Building; (3) to designate and approve window coverings to present a uniform exterior appearance; (4) to retain at all times and to use in appropriate instances, pass keys to all locks within and to the Premises; (5) to approve the weight, size, or location of heavy equipment, or articles within the Premises; (6) to change the arrangement and location of entrances of passageways, doors and doorways, corridors, elevators, stairs, toilets and public parts of the Building or Property; (7) to regulate access to telephone, electrical and other utility closets in the Building and to require use of designated contractors for any work involving access to the same; (8) if Tenant has vacated the Premises during the last six (6) months of the Lease Term, to perform additions, alterations and improvements to the Premises in connection with a reletting or anticipated reletting thereof without being responsible or liable for the value or preservation of any then existing improvements to the Premises and without effectuating a surrender or entitling Tenant to any abatement of Rent; (9) to grant to anyone the exclusive right to conduct any business or undertaking in the Building provided Landlord's exercise of its rights under this clause (9), shall not be deemed to prohibit Tenant from the operation of its business in the Premises; (10) to enter the Premises to inspect the same or to show the Premises to prospective purchasers, mortgagees, tenants (during the last twelve months of the Lease Term) or insurers, or to clean or make repairs, alterations or additions thereto, provided that, except for any entry in an emergency situation or to provide normal cleaning and janitorial service, Landlord shall provide Tenant with reasonable prior notice of any entry into the Premises; and (11) to temporarily close the Premises or the Building to perform repairs, alterations or additions in the Premises or the Building. In exercising its rights under this Section 27, Landlord shall make commercially reasonable efforts to avoid unreasonably interfering with Tenant's business operations in the Premises. If as a result of the exercise by Landlord of its rights set forth in (10) or (11) above, Tenant's ability to use the Premises for the conduct of its business is materially and adversely affected such that Tenant is reasonably prevented from using and actually does not use the Premises for the Permitted Use for five (5) consecutive days, then, in such event, as Tenant's sole and exclusive remedy therefor, Tenant's obligation to pay Base Rent shall be proportionately abated for the period that such situation exists and continuing for such time as Tenant is so prevented from and actually does not use the Premises for the Permitted Use as a result thereof, provided, however, there shall be no abatement arising from conditions caused by: (i) any breach of this Lease by Tenant or other negligent or otherwise wrongful act or omission of Tenant, or its employees, agents, or contractors; (ii) Landlord's compliance with the requirements of applicable

codes, laws or ordinances; (iii) Landlord's exercise of its rights or performance of its obligations under this Lease, including, without limitation, Landlord's performance of services, repairs, or alterations for the Premises or Building or for the benefit of Tenant or for the safety or protection of person or property during an emergency or for other reasonable security measures; or (iv) condemnation, fire or other casualty, or Force Majeure (in which case the other applicable provisions of this Lease shall apply). **Miscellaneous.**

A. **Partial Invalidity.** If any term or provision of this Lease, or the application thereof, shall, to any extent, be invalid or unenforceable, the remainder of this Lease, or the application of such term or provision, shall not be affected thereby, and each term and provision of this Lease shall be valid and enforced to the fullest extent permitted by law.

B. **No Recording by Tenant.** Tenant agrees not to record this Lease or any short form or memorandum hereof.

C. **Laws.** This Lease and the rights and obligations of the parties hereto shall be interpreted, construed, and enforced in accordance with the laws of the State of Texas.

D. **Force Majeure.** The term "**Force Majeure**" shall mean strikes, riots, acts of God, shortages of labor or materials, war, acts of terrorism, governmental laws, regulations or restrictions, beyond the control of Landlord or Tenant, as the case may be. Whenever a period of time is herein prescribed for the taking of any action by Landlord or Tenant (other than the Commencement Date and the payment of Rent and all other such sums of money as shall become due hereunder), such party shall not be liable or responsible for, there shall be excluded from the computation of such period of time, any delays due to events of Force Majeure.

E. **Time is of the Essence.** Except as expressly otherwise herein provided, with respect to all required acts of Tenant, time is of the essence of this Lease.

F. **Landlord's Transfer.** Landlord shall have the right to transfer and assign, in whole or in part, all of its rights and obligations hereunder and in the Building and Property referred to herein, and in such event and upon such transfer Landlord shall be released from any further obligations hereunder, and Tenant agrees to look solely to such successor in interest of Landlord for the performance of such obligations.

G. **Attorney's Fees.** If either party institutes a suit against the other for violation of or to enforce any covenant, term or condition of this Lease, the prevailing party (as defined by Texas law) shall be entitled to all of its costs and expenses, including, without limitation, reasonable attorneys' fees.

H. **Brokers.** Tenant hereby represents to Landlord that it has dealt directly with and only with the Broker as a broker in connection with this Lease. Landlord and Tenant hereby indemnify and hold each other harmless against any loss, claim, expense or liability with respect to any commissions or brokerage fees claimed by any broker or finder other

than the Broker on account of the execution and/or renewal of this Lease due to any action of the indemnifying party. Landlord agrees to make payment to Broker in accordance with the separate written agreements between Landlord and Broker.

I. Joint and Several. If there is more than one Tenant, or if Tenant as such is comprised of more than one person or entity, the obligations hereunder imposed upon Tenant shall be joint and several obligations of all such parties. All notices, payments, and agreements given or made by, with or to any one of such persons or entities shall be deemed to have been given or made by, with or to all of them.

J. Tenant's Financials. Tenant acknowledges that the financial capability of Tenant to perform its obligations hereunder is material to Landlord and that Landlord would not enter into this Lease but for its belief, based on its review of Tenant's financial statements, that Tenant is capable of performing such financial obligations. Tenant hereby represents, warrants and certifies to Landlord that its financial statements previously furnished to Landlord were at the time given true and correct in all material respects and that there have been no material subsequent changes thereto as of the date of this Lease. Tenant, within fifteen (15) days after request, and not more than once per calendar year unless in connection with a proposed sale or financing of the Project by Landlord or a proposed assignment by Tenant, shall provide Landlord with a current financial statement and such other information as Landlord may reasonably request in order to create a "business profile" of Tenant and determine Tenant's ability to fulfill its obligations under this Lease. Landlord, however, shall not require Tenant to provide such information unless Landlord requires the information in connection with a proposed financing or sale of the Property.

K. Survival. Notwithstanding anything to the contrary contained in this Lease, the expiration of the Lease Term, whether by lapse of time or otherwise, shall not relieve Tenant from Tenant's obligations accruing prior to the expiration of the Lease Term, and such obligations shall survive any such expiration or other termination of the Lease Term.

L. Preparer. Landlord and Tenant understand, agree and acknowledge that (i) this Lease has been freely negotiated by both parties; and (ii) in any controversy, dispute or contest over the meaning, interpretation, validity, or enforceability of this Lease or any of its terms or conditions, there shall be no inference, presumption, or conclusion drawn whatsoever against either party by virtue of that party having drafted this Lease or any portion thereof.

M. Headings. The headings and titles to the paragraphs of this Lease are for convenience only and shall have no effect upon the construction or interpretation of any part hereof. The term "including" shall be deemed to mean "including without limitation".

N. Section 93.012 of Texas Property Code. Landlord and Tenant agree that each provision of the Lease for determining charges, amounts and Additional Rent payments by Tenant (including without limitation, Section 4 of this Lease) is commercially reasonable, and as to each such charge or amount, constitutes a "method by which the charge is to be

computed" for purposes of Section 93.012 (Assessment of Charges) of the Texas Property Code, as such section now exists or as it may be hereafter amended or succeeded.

O. **TENANT CANNOT PROTEST.** TENANT HEREBY WAIVES ALL RIGHTS TO PROTEST THE APPRAISED VALUE OF THE PROPERTY OR TO APPEAL THE SAME AND ALL RIGHTS TO RECEIVE NOTICES OF REAPPRAISALS AS SET FORTH IN SECTIONS 41.413 AND 42.015 OF THE TEXAS TAX CODE.

P. Intentionally omitted.

Q. **Not Construction Contract.** Landlord and Tenant acknowledge and agree that this Lease, including all exhibits a part hereof, is not a construction contract or collateral to or affecting a construction contract.

29. **No Offer.** Landlord has delivered a copy of this Lease to Tenant for Tenant's review only, and the delivery hereof does not constitute an offer to Tenant or an option. This Lease shall not be effective until an original of this Lease is executed and delivered by both Landlord and Tenant and an original Guaranty, if applicable, executed by each Guarantor, if applicable, is delivered to and accepted by Landlord, and this Lease has been approved by Landlord's mortgagee, if required. **Entire Agreement.** This Lease, including the Exhibits attached hereto, constitutes the entire agreement between the parties hereto with respect to the subject matter of this Lease and supersedes all prior agreements and understandings between the parties related to the Premises, including all lease proposals, letters of intent and similar documents. Tenant expressly acknowledges and agrees that Landlord has not made and is not making, and Tenant, in executing and delivering this Lease, is not relying upon, any warranties, representations, promises or statements, except to the extent that the same are expressly set forth in this Lease. This Lease may be modified only by a written agreement signed by Landlord and Tenant. Landlord and Tenant expressly agree that there are and shall be no implied warranties of merchantability, habitability, suitability, fitness for a particular purpose or of any other kind arising out of this Lease, all of which are hereby waived by Tenant, and that there are no warranties which extend beyond those expressly set forth in this Lease. **Limitation of Liability.** Except as expressly set forth herein, the exclusive remedy of Tenant for failure of Landlord to perform any of its obligations under this Lease shall be an action for damages against Landlord. Any liability of Landlord under this Lease shall be limited solely to its interest in, and any proceeds from, the Property, and in no event shall any personal liability be asserted against Landlord, its members, or their respective members, partners, shareholders, officers, directors, agents or employees, in connection with this Lease nor shall any recourse be had to any other property or assets of Landlord, its members, or their respective members, partners, shareholders, officers, directors, agents or employees. Notwithstanding anything in this Lease to the contrary, the individual partners, members or shareholders directly or indirectly comprising Tenant (as opposed to Tenant itself) shall not have any personal liability for the performance of Tenant's obligations under this Lease. Except in the event of a Tenant holdover as provided by Section 23 of this Lease or otherwise covered by Tenant's express indemnities in this Lease, in no event shall Landlord or Tenant be liable for consequential or special damages as a result of a breach or default under this

**Lease. TENANT HEREBY WAIVES ITS STATUTORY LIEN UNDER SECTION
91.004 OF THE TEXAS PROPERTY CODE. [SIGNATURE PAGE FOLLOWS]**

IN WITNESS WHEREOF, Landlord and Tenant have executed this Lease as of the day and year first above written.

LANDLORD:

PARK LANE 8070 LLC,
a Texas limited liability company

By: *Vijay Borra*
Vijay Borra (Mar 26, 2026 12:48:39 CDT)
Vijay Borra, Manager

TENANT:

TD INDUSTRIES, INC.,
a Texas corporation

By: *Ray Lemaster*
Ray Lemaster (Mar 26, 2026 12:31:43 CDT)
Name: Ray Lemaster
Title: President

Vijay Borra
Vijay Borra (Mar 26, 2026 12:48:39 CDT)

EXHIBIT A

OUTLINE AND LOCATION OF PREMISES

THIS EXHIBIT IS ATTACHED SOLELY FOR THE PURPOSE OF LOCATING THE PREMISES (shown as Suite 285 below as 339.66 RSF but the Premises is about 500 RSF) AND NO REPRESENTATION, WARRANTY, OR COVENANT IS TO BE IMPLIED BY ANY OTHER INFORMATION SHOWN ON THE EXHIBIT (I.E., ANY INFORMATION AS TO SUITES, BUILDINGS, TENANTS OR PROSPECTIVE TENANTS, ETC. IS SUBJECT TO CHANGE AT ANY TIME).

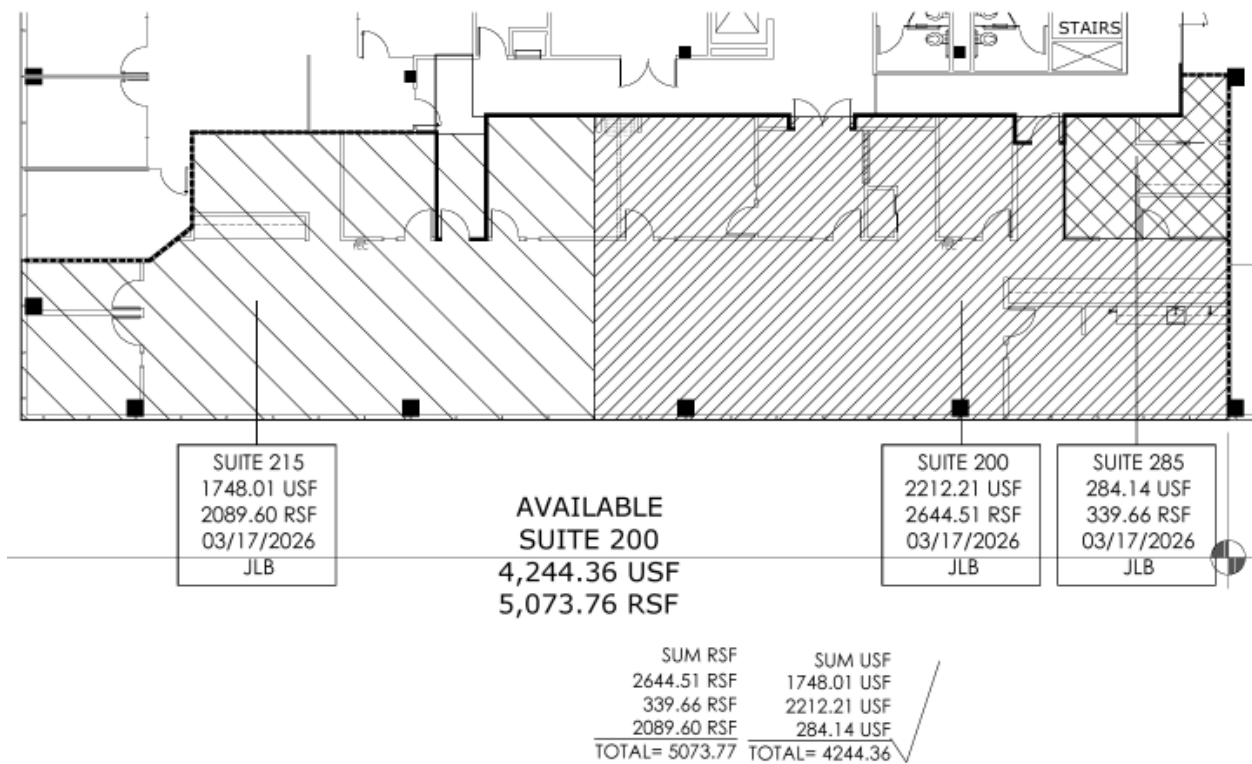


EXHIBIT A-1

LEGAL DESCRIPTION OF LAND

BEING all of Lot 1C, Block A/5456, Park Lane Addition, an addition to the City of Dallas, according to the plat recorded in Document Number 20080006956, Official Public Records, Dallas County, Texas.

[Site plan that follows is for informational purposes only and no representations or warranties shall be derived therefrom]

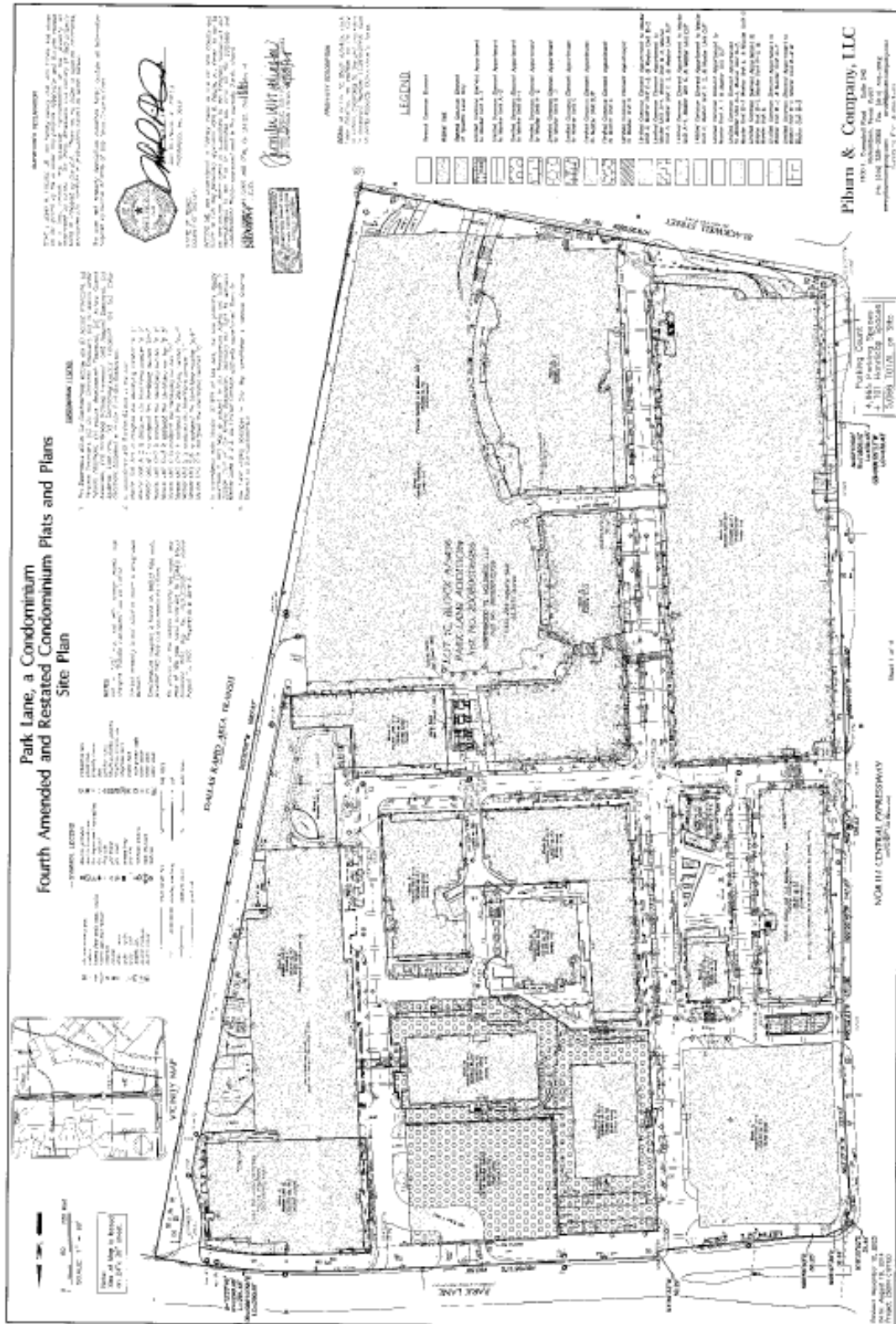


EXHIBIT B

RULES AND REGULATIONS

The following rules and regulations shall apply, where applicable, to the Premises, the Building, the parking areas associated therewith (if any), the Property and the appurtenances thereto:

1. Sidewalks, entrances, passageways, courts, corridors, vestibules, halls, elevators and stairways in and about the Building shall not be obstructed nor shall objects be placed against glass partitions, doors or windows which would be unsightly from the Building's corridors or from the exterior of the Building.

2. Plumbing, fixtures and appliances shall be used for only the purpose for which they were designed and no foreign substance of any kind whatsoever shall be thrown or placed therein. Damage resulting to any such fixtures or appliances from misuse by Tenant or its agents, employees or invitees, shall be paid for by Tenant and Landlord shall not in any case be responsible therefor.

3. Any sign, lettering, picture, notice or advertisement installed within the Premises which is visible from the public corridors within the Building shall be installed in such manner, and be of such character and style, as Landlord shall approve, in writing in its reasonable discretion. No sign, lettering, picture, notice or advertisement shall be placed on any outside window or door or in a position to be visible from outside the Building. No nails, hooks or screws (except for customary artwork or wall hangings) shall be driven or inserted into any part of the Premises or Building except by Building maintenance personnel, nor shall any part of the Building be defaced or damaged by Tenant.

4. Tenant shall not place any additional lock or locks on any door in the Premises or Building without Landlord's prior written consent. A reasonable number of keys to the locks installed by Landlord on the doors in the Premises shall be furnished by Landlord to Tenant at the cost of Tenant, and Tenant shall not have any duplicate keys made. All keys and passes shall be returned to Landlord at the expiration or earlier termination of this Lease.

5. Tenant shall refer all contractors, contractors' representatives and installation technicians to Landlord for Landlord's supervision, approval and control before the performance of any contractual services. This provision shall apply to all work performed in the Building including, but not limited to installation of telephones, telegraph equipment, electrical devices and attachments, doors, entranceways, and any and all installations of every nature affecting floors, walls, woodwork, window trim, ceilings, equipment and any other physical portion of the Building. Tenant shall not waste electricity, water or air conditioning. All controls shall be adjusted only by Building personnel.

6. Movement in or out of the Building of furniture or office equipment, or dispatch or receipt by Tenant of any merchandise or materials which require the use of elevators, stairways, lobby areas, or loading dock areas, shall be restricted to hours designated by Landlord. Tenant must seek Landlord's prior approval by providing in writing a detailed listing of such activity. If

approved by Landlord, such activity shall be under the supervision of Landlord and performed in the manner stated by Landlord. Landlord may prohibit any article, equipment or any other item from being brought into the Building. Tenant is to assume all risk for damage to articles moved and injury to persons resulting from such activity. If any equipment, property and/or personnel of Landlord or of any other tenant is damaged or injured as a result of or in connection with such activity, Tenant shall be solely liable for any and all damage or loss resulting therefrom.

7. All corridor doors, when not in use, shall remain closed. Tenant shall cause all doors to the Premises to be closed and securely locked before leaving the Building at the end of the day.

8. Tenant shall keep all electrical and mechanical apparatus owned by Tenant free of vibration, noise and airwaves which may be transmitted beyond the Premises.

9. Canvassing, soliciting and peddling in or about the Building or Property is prohibited. Tenant shall cooperate and use its best efforts to prevent the same.

10. Tenant shall not use the Premises in any manner which would overload the standard heating, ventilating or air conditioning systems of the Building.

11. Tenant shall not utilize any equipment or apparatus in such manner as to create any magnetic fields or waves which adversely affect or interfere with the operation of any systems or equipment in the Building or Property.

12. Bicycles and other vehicles are not permitted inside or on the walkways outside the Building, except in those areas specifically designated by Landlord for such purposes.

13. Tenant shall not operate or permit to be operated on the Premises any coin or token operated vending machine or similar device (including, without limitation, telephones, lockers, toilets, scales, amusements devices and machines for sale of beverages, foods, candy, cigarettes or other goods), except for those vending machines or similar devices which are for the sole and exclusive use of Tenant's employees, and then only if such operation does not violate the lease of any other tenant in the Building.

14. Tenant shall utilize the termite and pest extermination service designated by Landlord to control termites and pests in the Premises. Except as included in Basic Costs, Tenant shall bear the cost and expense of such extermination services.

15. Tenant shall not open or permit to be opened any window in the Premises. This provision shall not be construed as limiting access of Tenant to any balcony adjoining the Premises.

16. To the extent permitted by law, Tenant shall not permit picketing or other union activity involving its employees or agents in the Building or on the Property, except in those locations and subject to time and other constraints as to which Landlord may give its prior written consent, which consent may be withheld in Landlord's sole discretion.

17. Tenant shall comply with all applicable laws, ordinances, governmental orders or regulations and applicable orders or directions from any public office or body having jurisdiction, with respect to the Premises, the Building, the Property and their respective use or occupancy thereof. Tenant shall not make or permit any use of the Premises, the Building or the Property, respectively, which is directly or indirectly forbidden by law, ordinance, governmental regulation or order, or direction of applicable public authority, or which may be dangerous to person or property.

18. Tenant shall not use or occupy the Premises in any manner or for any purpose which would injure the reputation or impair the present or future value of the Premises, the Building or the Property; without limiting the foregoing, Tenant shall not use or permit the Premises or any portion thereof to be used for lodging, sleeping or for any illegal purpose.

19. All deliveries to or from the Premises shall be made only at times, in the areas and through the entrances and exits designated for such purposes by Landlord. Tenant shall not permit the process of receiving deliveries to or from the Premises outside of said areas or in a manner which may interfere with the use by any other tenant of its premises or any common areas, any pedestrian use of such area, or any use which is inconsistent with good business practice.

20. Tenant shall carry out Tenant's permitted repair, maintenance, alterations, and improvements in the Premises only during times agreed to in advance by Landlord and in a manner which will not interfere with the rights of other tenants in the Building.

21. Landlord may from time to time adopt appropriate systems and procedures for the security or safety of the Building, its occupants, entry and use, or its contents. Tenant, Tenant's agents, employees, contractors, guests and invitees shall comply with Landlord's reasonable requirements thereto.

22. Landlord shall have the right to prohibit the use of the name of the Building or any other publicity by Tenant that in Landlord's opinion may tend to impair the reputation of the Building or its desirability for Landlord or its other tenants. Upon written notice from Landlord, Tenant will refrain from and/or discontinue such publicity immediately.

23. Neither Tenant nor any of its employees, agents, contractors, invitees or customers shall smoke in any area designated by Landlord (whether through the posting of a "no smoking" sign or otherwise) as a "no smoking" area. In no event shall Tenant or any of its employees, agents, contractors, invitees or customers smoke in the hallways or bathrooms of the Building or at the entrances to the Building. Landlord reserves the right to designate, from time to time, additional areas of the Building and the Property as "no smoking" areas and to designate the entire Building and the Property as a "no smoking" area.

[END OF EXHIBIT B]

EXHIBIT C

PAYMENT OF BASIC COSTS

For the purposes of this Lease, Tenant's Pro Rata Share of Taxes, Basic Costs, and Electrical Costs are included in Base Rent; there is no additional Basic Costs, Taxes, and Electrical Costs due from Tenant.

A. During each calendar year, or portion thereof, falling within the Lease Term, Tenant shall pay to Landlord as Additional Rent hereunder Tenant's Pro Rata Share of Basic Costs (as defined below) and Tenant's Pro Rata Share of Taxes (as defined below) for the applicable calendar year, or portion thereof. Prior to the Commencement Date, or as soon as practical thereafter, and prior to January 1 of each calendar year during the Lease Term, or as soon as practical thereafter, Landlord shall make a good faith estimate of Basic Costs and Taxes for the applicable full or partial calendar year and Tenant's Pro Rata Share thereof. On or before the first day of each month during such calendar year, Tenant shall pay Landlord, as Additional Rent, a monthly installment equal to one-twelfth of Tenant's Pro Rata Share of Landlord's estimates of Basic Costs and Taxes. Landlord shall have the right from time to time during any such calendar year to reasonably revise the estimate of Basic Costs and/or Taxes for such year and provide Tenant with a revised statement therefor (provided, however, Landlord agrees that Landlord shall not issue a revised statement more than twice for Basic Costs and twice for Taxes in any calendar year), and thereafter the amount Tenant shall pay each month shall be based upon such revised estimate. If Landlord does not provide Tenant with an estimate of the Basic Costs and/or Taxes by January 1 of any calendar year, Tenant shall continue to pay a monthly installment based on the previous year's estimate until such time as Landlord provides Tenant with an estimate of Basic Costs and/or Taxes for the current year. Upon receipt of such current year's estimate, an adjustment shall be made for any month during the current year with respect to which Tenant paid monthly installments of Additional Rent based on the previous year's estimate. Tenant shall pay Landlord for any underpayment within thirty (30) days after Landlord's written demand. Any overpayment of Additional Rent shall, at Landlord's option, be refunded to Tenant or credited against the installment(s) of Additional Rent next coming due under the Lease. Any amount paid by Tenant based on any estimate shall be subject to adjustment pursuant to Paragraph B below when actual Basic Costs or actual Taxes, as applicable, are determined.

B. As soon as is practical following the end of each calendar year during the Lease Term, Landlord shall furnish to Tenant a statement of Landlord's actual Basic Costs and Taxes for the previous calendar year. If for any calendar year the Additional Rent collected for the prior year, as a result of Landlord's estimate of Basic Costs or Taxes, is in excess of Tenant's actual Pro Rata Share of Basic Costs or Taxes, as applicable, for such prior year, then Landlord shall refund to Tenant any overpayment (or at Landlord's option apply such amount against Additional Rent due or to become due hereunder). Likewise, Tenant shall pay to Landlord, within thirty (30) days after Landlord's written demand, any underpayment with respect to the prior year whether or not the Lease has terminated prior to receipt by Tenant of a statement for such underpayment, it being understood that this clause shall survive the expiration of the Lease.

C. **"Basic Costs"** shall mean all direct and indirect costs, expenses paid and disbursements of every kind (subject to the limitations set forth below), which Landlord incurs, pays or becomes obligated to pay in each calendar year in connection with operating, maintaining, repairing, owning and managing the Building and the Property. Basic Costs shall include, without limitation, management fees not to exceed five percent (5%) of gross revenues from the Property, insurance premiums and deductibles, any fees, costs, expenses and assessments of every kind incurred by Landlord pursuant to the Project Covenants and the Condominium Declaration with respect to the operation and maintenance of the Building and the Property, and the amortized cost of capital improvements made to the Building or the Property which are (i) primarily for the purpose of reducing operating expense costs or otherwise improving the operating efficiency of the Property or Building; or (ii) required to comply with any laws, rules or regulations of any governmental authority or a requirement of Landlord's insurance carrier; or (iii) primarily for the purpose of improving security at the Property or the Building. The cost of such capital improvements shall be straight-line amortized over the useful life thereof (at a commercially reasonable financing interest rate), as reasonably determined by Landlord and in compliance with GAAP. Landlord may reasonably allocate certain expenses, including trash removal, window cleaning and janitorial services between those portions of the Property leased or held for lease for general office purposes and those portion of the Property leased or held for lease for retail purposes, in which case Tenant's Pro Rata Share of such expenses shall be equitably adjusted, as reasonably determined by Landlord.

Basic Costs shall not include the following: (i) costs of alterations of tenant spaces (including all tenant improvements to such spaces); (ii) costs of capital improvements, except as provided in Paragraph C above; (iii) depreciation, amortization, interest and principal payments on mortgages, and other debt costs, if any; (iv) real estate brokers' leasing commissions or compensation and advertising and other marketing expenses; (v) costs or other services or work performed for the singular benefit of another tenant or occupant (other than for Common Areas); (vi) legal, space planning, construction, and other expenses incurred in procuring tenants for the Building or renewing or amending leases with existing tenants or occupants of the Building; (vii) costs associated with the collections of rent under any lease or defense of Landlord's title to or interests in the Property (viii) any expense for which Landlord actually receives reimbursement from insurance, condemnation awards, or other tenants (other than through the payment of additional rent under such tenants' leases); (ix) fines or penalties (or interest charges for late payment of any Taxes or payments to the Condominium Association) incurred due to violations by Landlord of laws, regulations, and the Condominium Declaration; (x) costs incurred in connection with the sale, financing, refinancing, mortgaging, or other change of ownership of the Building; (xi) all of Landlord's corporate overhead, costs and expenses, as distinguished from costs and expenses associated with the operation of the Property, such as, without limitation, corporate accounting and legal fees, costs and expense of defending or prosecuting litigation not related to the Property, and costs and expense of selling, syndicating, financing or mortgaging Landlord's interest in the Property; (xii) costs of restoration or repair of the Building as a result of total or partial destruction or condemnation thereof to the extent reimbursed by insurance or condemnation proceeds; (xiii) contributions to charitable organizations; (xiv) costs (including permit, license, and inspection fees) incurred in renovating, improving, decorating, painting or redecorating vacant leasable space or space for tenants; (xv) attorneys' fees and disbursements incurred in the resolution of disputes with other tenants or occupants of the Building; (xvi) costs

incurred in connection with the presence of any Hazardous Materials in violation of applicable Environmental Laws, except to the extent caused by Tenant or Tenant's employees, agents, or contractors (this clause shall not preclude costs incurred by Landlord in connection with Landlord's compliance with a change in Environmental Laws provided that the Building and Property are not in violation of such Environmental Laws as of the Commencement Date); (xvii) rental under any ground or underlying lease or leases; (xviii) Taxes, and (xix) Electrical Costs.

D. **"Taxes"** shall mean (i) all real estate taxes and assessments on the Property, the Building or the Premises, and taxes and assessments levied in substitution or supplementation in whole or in part of such taxes, (ii) all personal property taxes for the Property's personal property, including license expenses, (iii) all taxes imposed on services of Landlord's agents and employees, (iv) all franchise taxes and all sales, use and other taxes now or hereafter imposed by any governmental authority upon rent received by Landlord or revenue from the Property, excluding state and/or federal income tax, (v) all other taxes, fees or assessments now or hereafter levied by any governmental authority on the Property, the Building or its contents or on the operation and use thereof (except as relate to specific tenants), and (vi) all reasonable costs and fees incurred in connection with seeking reductions in or refunds in Taxes including, without limitation, any costs incurred by Landlord to challenge the tax valuation of the Building and Property, but excluding income taxes. Estimates of real estate taxes and assessments for any calendar year during the Lease Term shall be determined based on Landlord's good faith estimate of the real estate taxes and assessments. Taxes and assessments hereunder are those accrued with respect to such calendar year, as opposed to the real estate taxes and assessments paid or payable for such calendar year.

E. **"Electrical Costs."** In addition to Tenant's obligations with respect to Tenant's Pro Rata Share of Basic Costs and Tenant's Pro Rata Share of Taxes as provided in this Lease, Tenant shall also pay Tenant's Pro Rata Share of electrical costs and charges of any kind, general or special, ordinary or extra ordinary, charged to, levied against or otherwise payable with respect to the Building (which costs may include an allocation of the cost of electricity for Common Areas and parking facilities serving the Building) (collectively, **"Electrical Costs"**). Electrical Costs shall not include any Electrical Costs separately metered and payable directly to the utility provider by any tenant or other occupant of the Building, but in such event Landlord may exclude the rentable square footage of such tenant's or occupant's separately metered premises from the denominator of the Tenant's Pro Rata Share calculation with respect to Electrical Costs. Except as provided in the immediately preceding sentence, Tenant shall pay to Landlord Tenant's Pro Rata Share of Electrical Costs in the same manner as provided herein for Tenant's Pro Rata Share of Basic Costs and Taxes. A statement of Electrical Costs shall be furnished to Tenant in the same manner as Basic Costs and Taxes pursuant to Paragraph B above. Electrical Costs shall be subject to occupancy gross up in accordance with Paragraph F below.

F. **"Gross Up."** If the Building and the other buildings Landlord operates in conjunction therewith, if any, are not at least ninety-five percent (95%) occupied, in the aggregate, during any calendar year of the Lease Term or if Landlord is not supplying variable cost services to at least ninety-five percent (95%) of the Rentable Area in the Building and such other buildings, if any, at any time during any calendar year of the Lease Term, actual variable cost Basic Costs and Electrical Costs for purposes hereof shall, at Landlord's option, be determined as if the Building

and such other buildings had been ninety-five percent (95%) occupied and Landlord had been supplying services to ninety-five percent (95%) of the Rentable Area in the Building and such other buildings during such year.

G. **Tenant's Audit.** Tenant shall have the right to inspect, at reasonable times and in a reasonable manner, during the ninety (90) day period following the delivery of Landlord's statement of the actual amount of Basic Costs, such of Landlord's books of account and records as pertain to and contain information concerning such costs and expenses in order to verify the amounts thereof. Tenant agrees that any information obtained during an inspection by Tenant of Landlord's books of account and records shall be kept in confidence by Tenant and its agents and employees and shall not be disclosed to any other parties, except to Tenant's attorneys, accountants and other consultants. Any parties retained by Tenant to inspect Landlord's books of account and records shall not be compensated on a contingency fee basis. If Tenant shall not dispute any item or items included in the determination of Basic Costs for a particular calendar year by delivering a written notice to Landlord generally describing in reasonable detail the basis of such dispute within one hundred twenty (120) days after the statement for such year was delivered to it, Tenant shall be deemed to have approved such statement. During the pendency of any dispute over Basic Costs, Tenant shall pay, under protest and without prejudice, Tenant's Pro Rata Share of Basic Costs as calculated by Landlord.

[END OF EXHIBIT C]

EXHIBIT D

Intentionally Omitted

EXHIBIT E

ADDITIONAL PROVISIONS

I. PARKING.

(a) Landlord shall make available to Tenant at the commencement of the Lease Term the use of five (5) unreserved parking spaces (the "**Parking Spaces**") in the Building parking garage (the "**Parking Garage**"). During the Lease Term, Tenant shall pay to Landlord as Additional Rent, a parking charge for each Space made available to Tenant equal to the prevailing monthly rate charged by Landlord from time to time for unreserved and/or reserved parking spaces, as applicable, for the Parking Garage, plus applicable taxes. Notwithstanding the foregoing, during the initial Lease Term the monthly parking charge shall be \$0.00 for unreserved Parking Spaces. Tenant shall pay the replacement fee charged from time to time by Landlord for the loss of any magnetic parking card or parking sticker issued by Landlord. Landlord expressly reserves the right to redesignate parking areas and to modify the parking structure for other uses or to any extent.

(b) **No Landlord Liability.** It is hereby agreed and understood that Landlord's sole obligation hereunder is to make the Spaces available to Tenant. Tenant's right to the use of such Spaces shall be subject to compliance with the rules and regulations promulgated from time-to-time by the manager of the Parking Garage, and shall be subject to termination for violation of any such rules or regulations upon notice from such manager. Landlord shall have no liability whatsoever for any property damage, loss or theft and/or personal injury which might occur as a result of or in connection with the use of the Parking Spaces by Tenant, its employees, agents, servants, customers, invitees, and licensees, and Tenant hereby agrees to indemnify and hold Landlord harmless from and against any and all costs, claims, expenses, and/or causes of action which Landlord may incur in connection with or arising out of Tenant's use of the Parking Spaces.

(c) **No Claims by Tenant.** The failure, for any reason, of Landlord to provide or make available the Parking Spaces to Tenant or the inability of Tenant to utilize these Parking Spaces shall under no circumstances be deemed a default by Landlord pursuant to the terms of the Lease or give rise to any claim or cause of action by Tenant against Landlord, the same being hereby expressly waived by Tenant. Tenant's sole remedy for such failure shall be the equitable abatement of Tenant's parking rental fee.

II. RENEWAL OPTION.

(a) Tenant shall have the right to extend the Lease Term with respect to the entire Premises only (the "**Renewal Option**") for two (2) additional consecutive periods of three (3) months each commencing on the day following the Expiration Date of the initial Lease Term or the first Renewal Term, as the case may be (each a "**Renewal Term**"), provided that each of the following occurs:

(i) Landlord receives notice of exercise of a Renewal Option ("**Renewal Notice**") not less than ninety (90) days prior to the expiration of the initial Lease Term or first Renewal Term, as the case may be; and

- (ii) Tenant is not in default under the Lease beyond any applicable notice and cure periods at the time that Tenant delivers any Renewal Notice; and
 - (iii) No part of the Premises is sublet at the time that Tenant delivers a Renewal Notice; and
 - (iv) The Lease has not been assigned except pursuant to a permitted Transfer prior to the date that Tenant delivers a Renewal Notice.
- (b) The Base Rent rate per rentable square foot for the Premises during the Renewal Terms shall \$24.00 per square foot of the Premises.
- (c) Tenant shall pay Additional Rent (i.e. Basic Costs and Taxes) for the Premises during the Renewal Terms in accordance with the terms of this Lease.
- (d) If Tenant is entitled to and properly exercises a Renewal Option, if so elected by Landlord, Landlord and Tenant shall execute an amendment (the "**Renewal Amendment**") to reflect changes in the Base Rent, Lease Term, Expiration Date and other appropriate terms; provided that an otherwise valid exercise of the Renewal Option shall be fully effective whether or not the Renewal Amendment is executed.
- (e) The renewal rights of Tenant hereunder shall not be severable from the Lease, nor may such rights be assigned or otherwise conveyed in connection with any permitted assignment of the Lease except for a permitted Transfer. Landlord's consent to any assignment of the Lease shall not be construed as allowing an assignment of such rights to any assignee.

[END OF EXHIBIT E]

EXHIBIT F

COMMENCEMENT LETTER

Date

Re: Lease Agreement (the "**Lease**") dated _____, _____, between PARK LANE 8070 LLC, a Texas limited liability company ("**Landlord**"), and TD INDUSTRIES, INC., a Texas corporation ("**Tenant**"). Capitalized terms used herein but not defined shall be given the meanings assigned to them in the Lease.

Ladies and Gentlemen:

Landlord and Tenant agree as follows:

1. **Condition of Premises.** Any improvements or allowance required by the terms of the Lease to be made by Landlord for Tenant's initial occupancy of the Premises (excluding ongoing repair and maintenance obligations), if any, have been completed and Landlord has fulfilled all of its duties under the Lease with respect to the delivery of the Premises.

2. **Commencement Date.** The Commencement Date of the Lease is _____, 20__.

3. **Expiration Date.** The Lease Term is scheduled to expire on the last day of the ____ full calendar month of the Lease Term, which date is _____, 20__.

4. **Contact Person.** Tenant's contact person in the Premises is:

Attention: _____
Telephone: _____
Telecopy: _____

5. **Ratification.** Tenant confirms and ratifies that, as of the date hereof, (a) the Lease is in full force and effect, and (b) Tenant has no claims, counterclaims, set-offs or defenses against Landlord arising out of the Lease or in any way relating thereto or arising out of any other transaction between Landlord and Tenant.

6. **Binding Effect; Governing Law.** Except as modified hereby, the Lease shall remain in full effect and this letter shall be binding upon Landlord and Tenant and their respective successors and assigns. If any inconsistency exists or arises between the terms of this letter and the terms of the Lease, the terms of this letter shall prevail. This letter shall be governed by the laws of the state in which the Premises are located.

Please indicate your agreement to the above matters by signing this letter in the space indicated below and returning an executed original to us.

Sincerely,

LANDLORD:

PARK LANE 8070 LLC,
a Texas limited liability company

By: _____
Vijay Borra, Manager

Agreed and accepted:

TENANT:

TD INDUSTRIES, INC.,
a Texas corporation

By: _____

Name: _____

Title: _____

Lease - Office lease - TD Industries_ Inc. - 8080 Park Lane (temporary - 24 months)(9436369.3)

Final Audit Report

2026-03-26

Created:	2026-03-26
By:	Erika Bruce (ebruce@gpm-law.com)
Status:	Signed
Transaction ID:	CBJCHBCAABAArnTyKG4yQFBITw9QWnYNlvg96mNVvt

"Lease - Office lease - TD Industries_ Inc. - 8080 Park Lane (temporary - 24 months)(9436369.3)" History

-  Document created by Erika Bruce (ebruce@gpm-law.com)
2026-03-26 - 4:23:47 PM GMT
-  Document emailed to Ray Lemaster (ray.lemaster@tdindustries.com) for signature
2026-03-26 - 4:23:56 PM GMT
-  Email sent to thomas.nolan@tdindustries.co bounced and could not be delivered
2026-03-26 - 4:24:07 PM GMT
-  Email viewed by Ray Lemaster (ray.lemaster@tdindustries.com)
2026-03-26 - 5:26:24 PM GMT
-  Document e-signed by Ray Lemaster (ray.lemaster@tdindustries.com)
Signature Date: 2026-03-26 - 5:31:43 PM GMT - Time Source: server
-  Document emailed to Vijay Borra (vijay@dfwland.com) for signature
2026-03-26 - 5:31:46 PM GMT
-  Email viewed by Vijay Borra (vijay@dfwland.com)
2026-03-26 - 5:47:37 PM GMT
-  Document e-signed by Vijay Borra (vijay@dfwland.com)
Signature Date: 2026-03-26 - 5:48:39 PM GMT - Time Source: server
-  Agreement completed.
2026-03-26 - 5:48:39 PM GMT